PHILOSOPHY

A Lie Never Justifiable: A Study in Ethics

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A LIE NEVER JUSTIFIABLE

A Study in Ethics

BY

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PREFACE.

That there was need of a book on the subject of which this treats, will be evidenced to those who examine its contents. Whether this book meets the need, it is for those to decide who are its readers.

The circumstances of its writing are recited in its opening chapter. I was urged to the undertaking by valued friends. At every step in its progress I have been helped by those friends, and others. For much of that which is valuable in it, they deserve credit. For its imperfections and lack, I alone am at fault.

Although I make no claim to exhaustiveness of treatment in this work, I do claim to have attempted a treatment that is exceptionally comprehensive and thorough. My researches have included extensive and varied fields of fact and of thought, even though very much in those fields has been left ungathered. What is here presented is at least suggestive of the abundance and richness of the matter available in this line.

While not presuming to think that I have said the last word on this question of the ages, I do venture to hope that I have furnished fresh material for its more intelligent consideration. It may be that, in view of the data here presented, some will settle the question finally for themselves--by settling it right.

If the work tends to bring any considerable number to this practical issue, I shall be more than repaid for the labor expended on it; for I have a profound conviction that it is the question of questions in ethics, now as always.

H. CLAY TRUMBULL.

PHILADELPHIA,

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I.

A QUESTION OF THE AGES.

Whether a lie is ever justifiable, is a question that has been in discussion, not only in all the Christian centuries, but ever since questions concerning human conduct

were first a possibility. On the one hand, it has been claimed that a lie is by its very nature irreconcilable with the eternal principles of justice and right; and, on the other hand, it has been asserted that great emergencies may necessitate a departure from all ordinary rules of human conduct, and that therefore there may be, in an emergency, such a thing as the "lie of necessity."

It is not so easy to consider fairly a question like this in the hour when vital personal interests pivot on the decision, as it is in a season of rest and safety; yet, if in a time of extremest peril the unvarying duty of truthfulness shines clearly through an atmosphere of sore temptation, that light may be accepted as diviner because of its very power to penetrate clouds and to dispel darkness. Being forced to consider, in an emergency, the possible justification of the so-called "lie of necessity," I was brought to a settlement of that question in my own mind, and have since been led to an honest endeavor to bring others to a like settlement of it. Hence this monograph.

In the summer of 1863 I was a prisoner of war in Columbia, South Carolina. The Federal prisoners were confined in the common jail, under military guard, and with no parole binding them not to attempt an escape. They were subject to the ordinary laws of war. Their captors were responsible for their detention in imprisonment, and it was their duty to escape from captivity, and to return to the army of the government to which they owed allegiance, if they could do so by any right means. No obligations were on them toward their captors, save those which are binding at all times, even when a state of war suspends such social duties as are merely conventional.

Only he who has been a prisoner of war in a Southern prison in midsummer, or in a Northern prison in the dead of winter, in time of active hostilities outside, can fully realize the heart-longings of a soldier prisoner to find release from his sufferings in confinement, and to be again at his post of duty at the front, or can understand how gladly such a man would find a way, consistent with the right, to escape, at any involved risk. But all can believe that plans of escape were in frequent discussion among the restless Federal prisoners in Columbia, of whom I was one.

A plan proposed to me by a fellow-officer seemed to offer peculiar chances of success, and I gladly joined in it. But as its fuller details were considered, I found that a probable contingency would involve the telling of a lie to an enemy, or a failure of the whole plan. At this my moral sense recoiled; and I expressed my unwillingness to tell a lie, even to regain my personal liberty or to advantage my government by a return to its army. This opened an earnest discussion of the question whether there is such a thing as a "lie of necessity," or a justifiable lie. My friend was a pure-minded man of principle, ready to die for his convictions; and he looked at this question with a sincere desire to know the right, and to conform to it. He argued that a condition of war suspended ordinary social relations between the combatants, and that the obligation of truth-speaking was one of the duties thus suspended. I, on the other hand, felt that a lie was necessarily a sin against God, and therefore was never justifiable.

My friend asked me whether I would hesitate to kill an enemy who was on guard over me, or whom I met outside, if it were essential to our escape. I replied that I would not hesitate to do so, any more than I would hesitate at it if we were over against each other in battle. In time of war the soldiers of both sides take the risks of a life-and-death struggle; and now that we were unparoled prisoners it was our duty to escape if we could do so, even at the risk of our lives or of the lives of our captors, and it was their duty to prevent our escape at a similar risk. My friend then asked me on what principle I could justify the taking of a man's life as an enemy, and yet not feel justified in telling him a lie in order to save his life and secure our liberty. How could it be claimed that it was more of a sin to tell a lie to a man who had forfeited his social rights, than to kill him. I confessed that I could not at that time see the reason for the distinction, which my moral sense assured me was a real one, and I asked time to think of it. Thus it was that I came first to face a question of the ages, Is a lie ever justifiable? under circumstances that involved more than life to me, and when I had a strong inducement to see the force of reasons in favor of a "lie of necessity."

In my careful study, at that time, of the principles involved in this question, I came upon what seemed to me the conclusion of the whole matter. God is the author of life. He who gives life has the right to take it again. What God can do by himself, God can authorize another to do. Human governments derive their just powers from God. The powers that be are ordained of God. A human government acts for God in the administering of justice, even to the extent of taking life. If a war waged by a human government be righteous, the officers of that government take life, in the prosecution of the war, as God's agents. In the case then in question, we who were in prison as Federal officers were representatives of our government, and would be justified in taking the lives of enemies of our government who hindered us as God's agents in the doing of our duty to God and to our government.

On the other hand, God, who can justly take life, cannot lie. A lie is contrary to the very nature of God. "It is impossible for God to lie."[1] And if God cannot lie, God cannot authorize another to lie. What is unjustifiable in God's sight, is without a possibility of justification in the universe. No personal or social emergency can justify a lie, whatever may be its apparent gain, or whatever harm may seem to be involved in a refusal to speak it. Therefore we who were Federal prisoners in war-time could not be justified in doing what was a sin _per se_, and what God was by his very nature debarred from authorizing or approving. I could see no way of evading this conclusion, and I determinedly refused to seek release from imprisonment at the cost of a sin against God.

[Footnote 1: Heb. 6: 18]

At this time I had no special familiarity with ethics as a study, and I was unacquainted with the prominence of the question of the "lie of necessity" in that realm of thought. But on my return from army service, with my newly awakened interest in the subject, I came to know how vigorous had been its discussion, and how varied had been the opinions with reference to it, among philosophic thinkers in all the centuries; and I sought to learn for myself what could be known concerning the principles involved in this question, and their practical application to the affairs of

human life. And now, after all these years of study and thought, I venture to make my contribution to this phase of Christian ethics, in an exhibit of the facts and principles which have gone to confirm the conviction of my own moral sense, when first I was called to consider this question as a question.

II.

ETHNIC CONCEPTIONS.

The habit of lying is more or less common among primitive peoples, as it is among those of higher cultivation; but it is of interest to note that widely, even among them, the standard of truthfulness as a duty is recognized as the correct standard, and lying is, in theory at least, a sin. The highest conception of right observable among primitive peoples, and not the average conformity to that standard in practice, is the true measure of right in the minds of such peoples. If we were to look at the practices of such men in times of temptation, we might be ready to say sweepingly with the Psalmist, in his impulsiveness, "I said in my haste, All men are liars!"[1] But if we fixed our minds on the loftiest conception of truthfulness as an invariable duty, recognized by races of men who are notorious as liars, we should see how much easier it is to have a right standard than to conform to it.

[Footnote 1: Psa. 116: II.]

A careful observer of the people of India, who was long a resident among them,[1] says: "More systematic, more determined, liars, than the people of the East, cannot, in my opinion, be found in the world. They often utter falsehoods without any apparent reason; and even when truth would be an advantage, they will not tell it.... Yet, strange to say, some of their works and sayings represent a falsehood as almost the unpardonable sin. Take the following for an example: 'The sin of killing a Brahman is as great as that of killing a hundred cows; and the sin of killing a hundred cows is as great as that of killing a woman; the sin of killing a hundred women is as great as that of killing a child in the womb; and the sin of killing a hundred [children] in the womb is as great as that of telling a lie.'"

[Footnote 1: Joseph Roberts, in his _Oriental Illustrations_, p. 580.]

The Mahabharata is one of the great epics of ancient India. It contains a history of a war between two rival families, or peoples, and its text includes teachings with reference to "everything that it concerned a cultivated Hindoo to know." The heroes in this recorded war, between the Pandavas and the Kauravas, are in the habit of lying without stint; yet there is evidence that they recognized the sin of lying even to an enemy in time of war, and when a decisive advantage might be gained by it. At a point in the combat when Yudhishthira, a leader of the Pandavas, was in extremity in his battling with Drona, a leader of the Kauravas, the divine Krishna told Yudhishthira that, if he would tell Drona (for in these mythical contests the combatants were usually within speaking distance of each other) that his loved "son Aswatthanea was dead, the old warrior would immediately lay down his arms and become an easy prey." But Yudhishthira "had never been known to tell a falsehood," and in this

instance he "utterly refused to tell a lie, even to secure the death of so powerful an enemy." [1] Although it came about that Drona was, as a matter of fact, defeated by treachery, the sin of lying, even in time of war, and to an enemy, is clearly brought out as a recognized principle of both theory and action among the ancient Hindoos.

[Footnote 1: See Wheeler's _History of India_, I., 321.]

There is a famous passion-play popular in Southern India and Ceylon, which illustrates the Hindoo ideal of truthfulness at every risk or cost. Viswamitra, the tempter and accuser as represented in the Vedas, appears in the council of the gods, face to face with Indra. The question is raised by Indra, who is the most virtuous sovereign on earth. He asks, "What chief of mortals is there, who has never told a lie?" Harischandra, king of Ayodiah (Oude) is named as such a man. Viswamitra denies it. It is agreed (as in the testing of Job, according to the Bible story) that Viswamitra may employ any means whatsoever for the inducing of Harischandra to lie, unhindered by Indra or any other god. If he succeeds in his effort, he shall secure to himself all the merit of the good deeds of Harischandra; but if Harischandra cannot be induced to lie, Viswamitra must add half his merit to that of Harischandra.[1]

[Footnote 1: Arichandra, the Martyr of Truth: A Tamil Drama translated into English by Muta Coomâra Swâmy; cited in Conway's _Demonology and Devil Lore_, II., 35-43.]

First, Viswamitra induces Harischandra to become the custodian of a fabulous treasure, with a promise to deliver it up when called for. Then he brings him into such a strait that he must give up to Viswamitra all his possessions, including that treasure and his kingdom, in order to retain his personal virtue. After this, Viswamitra demands the return by Harischandra of the gold which has been already surrendered, claiming that its surrender was not according to the contract. In this emergency Viswamitra suggests, that if Harischandra will only deny that he owes this amount to his enemy the debt shall at once be canceled. "Such a declaration I can never make," says Harischandra. "I owe thee the gold, and pay it I will."

From this time forward the efforts of Viswamitra are directed to the inducing of Harischandra to say that he is not in debt to his adversary; but in every trial Harischandra refuses to tell a lie. His only son dies in the desert. He and his wife are in poverty and sorrow; while all the time he is told that his kingdom and his treasures shall be restored to him, if he will tell only one lie. At last his wife is condemned to death on a false accusation, and he is appointed, by the sovereign of the land where she and he have been sold as slaves, to be her executioner. She calls on him to do his duty, and strike off her head. Just then Viswamitra appears to him, saying: "Wicked man, spare her! Tell a lie even now, and be restored to your former state!"

Harischandra's answer is: "Even though thou didst offer to me the throne of Indra, I would not tell a lie." And to his wife, Chandravati, he says encouragingly: "This keen saber will do its duty. Thou dead, thy husband dies too--this selfsame sword shall pierce my breast.... Yes, let all men perish, let all gods cease to exist, let the stars that shine above grow dim, let all seas be dried up, let all mountains be leveled to the ground, let wars rage, blood flow in streams, let millions of millions of Harischandras

be thus persecuted; yet let truth be maintained, let truth ride victorious over all, let truth be the light,--truth alone the lasting solace of mortals and immortals."

As Harischandra strikes at the neck of Chandravati, "the sword, instead of harming her, is transformed into a necklace of pearls, which winds itself around her. The gods of heaven, all sages, and all kings, appear suddenly to the view of Harischandra," and Siva, the first of the gods, commends him for his fidelity to truth, and tells him that his dead son shall be brought again to life, and his kingdom and treasures and honors shall be restored to him. And thus the story of Harischandra stands as a rebuke to the Christian philosopher who could suppose that God, or the gods, would co-work with a man who acted on the supposition that there is such an anomaly in the universe as "a lie of necessity."

The old Scandinavian heroes were valiant in war, but they held that a lie was not justifiable under any pressure of an emergency. Their Valhalla heaven was the home of those who had fought bravely; but there was no place for liars in it. A fine illustration of their conception of the unvarying duty of truthfulness is given in the saga of Fridthjof. Fridthjof, heroic son of Thorstein, loved Ingeborg, daughter of his father's friend, King Bele. Ingeborg's brother Helge, successor to his father's throne, opposed the match, and shut her up within the sacred enclosure of the god Balder. Fridthjof ventured within the forbidden ground, in order to pledge to her his manly troth. The lovers were pure in purpose and in act, but, if their interview were known, they would both be permanently harmed in reputation and in standing. A rumor of their secret meeting was circulated, and Fridthjof was summoned before the council of heroes to answer to the charge. If ever a lie were justifiable, it would seem to be when a pure woman's honor was at stake, and when a hero's happiness and power for good pivoted on it. Fridthjof tells to Ingeborg the story of his sore temptation when, in the presence of the council, Helge challenges his course.

"'Say, Fridthjof, Balder's peace hast thou not broken, Not seen my sister in his house while Day Concealed himself, abashed, before your meeting? Speak! yea or nay!' Then echoed from the ring Of crowded warriors, 'Say but nay, say nay! Thy simple word we'll trust; we'll court for thee,--Thou, Thorstein's son, art good as any king's. Say nay! say nay! and thine is Ingeborg!' 'The happiness,' I answered, 'of my life On one word hangs; but fear not therefore, Helge! I would not lie to gain the joys of Valhal, Much less this earth's delights. I've seen thy sister, Have spoken with her in the temple's night, But have not therefore broken Balder's peace!' More none would hear. A murmur of deep horror The diet traversed; they who nearest stood Drew back, as I had with the plague been smitten."[1]

[Footnote 1: Anderson's _Viking Tales of the North_, p. 223.]

And so, because Fridthjof would not lie, he lost his bride and became a wanderer from his land, and Ingeborg became the wife of another; and this record is to this day told to the honor of Fridthjof, in accordance with the standard of the North in the matter of truth-telling.

In ancient Persia, the same high standard prevailed. Herodotus says of the Persians: "The most disgraceful thing in the world, they think, is to tell a lie; the next

worse, to owe a debt; because, among other reasons, the debtor is obliged to tell lies."[1] "Their sons are carefully instructed, from their fifth to their twentieth year, in three things alone,--to ride, to draw the bow, and to speak the truth."[2] Here the one duty in the realm of morals is truth-telling. In the famous inscription of Darius, the son of Hystaspes, on the Rock of Behistun,[3] there are repeated references to lying as the chief of sins, and to the evil time when lying was introduced into Persia, and "the lie grew in the provinces, in Persia as well as in Media and in the other provinces." Darius claims to have had the help of "Ormuzd and the other gods that may exist," because he "was not wicked, nor a liar;" and he enjoins it on his successor to "punish severely him who is a liar or a rebel."

[Footnote 1: Rawlinson's _Herodotus_, Bk. I., § 139.]

[Footnote 2: _Ibid_., Bk. I., § 136.]

[Footnote 3: Sayce's _Introduction to Ezra, Nehemiah, and Esther_, pp. 120-137.]

The Zoroastrian designation of heaven was the "Home of Song;" while hell was known as the "Home of the Lie."[1] There was in the Zoroastrian thought only two rival principles in the universe, represented by Ormuzd and Ahriman, as the God of truth, and the father of lies; and the lie was ever and always an offspring of Ahriman, the evil principle: it could not emanate from or be consistent with the God of truth. The same idea was manifest in the designation of the subordinate divinities of the Zoroastrian religion. Mithra was the god of light, and as there is no concealment in the light, Mithra was also god of truth. A liar was the enemy of righteousness.[2]

[Footnote 1: Müller's _Sacred Books of the East_, XXXI., 184.]

[Footnote 2: Müller's _Sacred Books of the East_, XXIII., 119 f., 124 f., 128, 139. See reference to Jackson's paper on "the ancient Persians' abhorrence of falsehood, illustrated from the Avesta," in _Journal of Am. Oriental Soc_., Vol. XIII., p. cii.]

"Truth was the main cardinal virtue among the Egyptians," and "falsehood was considered disgraceful among them."[1] Ra and Ma were symbols of Light and Truth; and their representation was worn on the breastplate of priest and judge, like the Urim and Thummim of the Hebrews.[2] When the soul appeared in the Hall of Two Truths, for final judgment, it must be able to say, "I have not told a falsehood," or fail of acquittal.[3] Ptah, the creator, a chief god of the Egyptians, was called "Lord of Truth."[4] The Egyptian conception of Deity was: "God is the truth, he lives by truth, he lives upon the truth, he is the king of truth."[5] The Egyptians, like the Zoroastrians, seemed to count the one all-dividing line in the universe the line between truth and falsehood, between light and darkness.

[Footnote 1: Wilkinson's _Ancient Egyptians_, I., 299; III., 183-185.]

[Footnote 2: Exod. 39: 8-21; Lev. 8: 8.]

[Footnote 3: Bunsen's _Egypt's Place in Universal History_, V., 254.]

[Footnote 4: Wilkinson's _Anc. Egyp_., III., 15-17.]

[Footnote 5: Budge's _The Dwellers on the Nile_, p. 131.]

Among the ancient Greeks the practice of lying was very general, so general that writers on the social life of the Greeks have been accustomed to give a low place relatively to that people in its estimate of truthfulness as a virtue. Professor Mahaffy says on this point: "At no period did the nation ever attain that high standard which is the great feature in Germanic civilization. Even the Romans, with all their coarseness, stood higher in this respect. But neither in Iliad nor in Odyssey is there, except in phrases, any reprobation of deceit as such." He points to the testimony of Cicero, concerning the Greeks, who "concedes to them all the high qualities they choose to claim save one--that of truthfulness."[1] Yet the very way in which Herodotus tells to the credit of the Persians that they allowed no place for the lie in their ethics[2] seems to indicate his apprehension of a higher standard of veracity than that which was generally observed among his own people. Moreover, in the Iliad, Achilles is represented as saying: "Him I hate as I do the gates of Hades, who hides one thing in his heart and utters another;" and it is the straightforward Achilles, rather than "the wily and shiftful Ulysses," who is the admired hero of the Greeks.[3] Plato asserts, and argues in proof of his assertion, that "the veritable lie ... is hated by all gods and men." He includes in the term "veritable lie," or "genuine lie," a lie in the soul as back of the spoken lie, and he is sure that "the divine nature is incapable of a lie," and that in proportion as the soul of a man is conformed to the divine image, the man "will speak, act, and live in accordance with the truth."[4] Aristotle, also, while recognizing different degrees of veracity, insists that the man who is in his soul a lover of truth will be truthful even when he is tempted to swerve from the truth. "For the lover of truth, who is truthful where nothing is at stake [or where it makes no difference], will yet more surely be truthful where there is a stake [or where it does make a difference]; for he will [then] shun the lie as shameful, since he shuns it simply because it is a lie."[5] And, again, "Falsehood abstractly is bad and blamable, and truth honorable and praiseworthy; and thus the truthful man being in the mean is praiseworthy, while the false [in either extreme, of overstating or of understating] are both blamable, but the exaggerating man more so than the other."[6]

[Footnote 1: Mahaffy's _Social Life in Greece_, pp. 27, 123. See also Fowler's _Principles of Morals_, II., 219-221.]

[Footnote 2: _Hist_., Bk. I., §139.]

[Footnote 3: Professor Fowler seems to be quite forgetful of this fact. He speaks of Ulysses as if he had precedence of Achilles in the esteem of the Greeks. See his _Principles of Morals_, II., 219.]

[Footnote 4: Plato's _Republic_, II., 382, a, b.]

[Footnote 5: Aristotle's _Eth. Nic_., IV., 13, 1127, a, b.]

[Footnote 6: _Ibid_., IV.]

Theognis recognizes this high ideal of the duty and the beauty of truthfulness, when he says: "At first there is a small attractiveness about a lie, but in the end the gain it brings is both shameful and harmful. That man has no fair glory, in whose heart dwells a lie, and from whose mouth it has once issued."[1]

[Footnote 1: Theognis, 607.]

Pindar looks toward the same standard when he says to Hiero, "Forge thy tongue on the anvil of truth;"[1] and when he declares emphatically, "I will not stain speech with a lie."[2] So, again, when his appeal to a divinity is: "Thou that art the beginning of lofty virtue, Lady Truth, forbid thou that my poem [or composition] should stumble against a lie, harsh rock of offense."[3] In his tragedy of the Philoctetes, Sophocles makes the whole play pivot on the remorse of Neoptolemus, son of Achilles, over his having lied to Philoctetes (who is for the time being an enemy of the Greeks), in order to secure through him the killing of Paris and the overthrow of Troy. The lie was told at the instigation of Ulysses; but Neoptolemus repents its utterance, and refuses to take advantage of it, even though the fate of Troy and the triumph of Greek arms depend on the issue. The plain teaching of the tragedy is that "the purposes of heaven are not to be served by a lie; and that the simplicity of the young son of truth-loving Achilles is better in the sight of heaven, even when it seems to lead to failure, than all the cleverness of guileful Ulysses."[4]

[Footnote 1: Pythian Ode, I, 86.]

[Footnote 2: Olympian Ode, 4, 16.]

[Footnote 3: Bergk's _Pindar_, 183 [221].]

[Footnote 4: Professor Lamberton]

It is admitted on all hands that the Romans and the Germans had a high ideal as to the duty of truthfulness and the sin of lying.[1] And so it was in fact with all peoples which had any considerable measure of civilization in former ages. It is a noteworthy fact that the duty of veracity is often more prominent among primitive peoples than among the more civilized, and that, correspondingly, lying is abhorred as a vice, or seems to be unknown as an expedient in social intercourse. This is not always admitted in the theories of writers on morals, but it would seem to be borne out by an examination into the facts of the case. Lecky, in his study of "the natural history of morals,"[2] claims that veracity "usually increases with civilization," and he seeks to show why it is so. But this view of Lecky's is an unfounded assumption, in support of which he proffers no evidence; while Herbert Spencer's exhibit of facts, in his "Cyclopaedia of Descriptive Sociology," seems to disprove the claim of Lecky; and he directly asserts that "surviving remnants of some primitive races in India have natures in which truthfulness seems to be organic; that not only to the surrounding Hindoos, higher intellectually and relatively advanced in culture, are they in this respect far superior, but they are superior to Europeans."[3]

[Footnote 1: See Fowler's _Principles of Morals_, II., 220; also Mahaffy's _Social Life in Greece_, p. 27. Note, for instance, the high standard as to truthfulness indicated by Cicero, in his "Offices," III., 12-17, 32. "Pretense and dissimulation ought to be banished from the whole of life." "Reason ... requires that nothing be done insidiously, nothing dissemblingly, nothing falsely." Note, also, Juvenal, Satire XIII., as to the sin of a lie purposed, even if not spoken; and Marcus Aurelius in his "Thoughts," Book IX.: "He ... who lies is guilty of impiety to the same [highest] divinity." "He, then, who lies intentionally is guilty of impiety, inasmuch as he acts

unjustly by deceiving; and he also who lies unintentionally, inasmuch as he is at variance with the universal nature, and inasmuch as he disturbs the order by fighting against the nature of the world; for he fights against it, who is moved of himself to that which is contrary to truth, for he had received powers from nature through the neglect of which he is not able now to distinguish falsehood from truth."]

[Footnote 2: _History of European Morals_, I., 143.]

[Footnote 3: See Spencer's _Principles of Sociology_, II., 234 ff.; also his _Inductions of Ethics_, p. 405 f.]

Among those Hill Tribes of India which have been most secluded, and which have retained the largest measure of primitive life and customs, fidelity to truth in speech and act is still the standard, and a lie is abhorrent to the normal instincts of the race. Of the Khonds of Central India it is said that they, "in common with many other wild races, bear a singular character for truthfulness and honesty;"[1] and that especially "the aborigine is the most truthful of beings."[2] "The Khonds believe that truthfulness is one of the most sacred of duties imposed by the gods."[3] "They are men of one word."[4] "The truth is by a Sonthals held sacred." [5] The Todas "call falsehood one of the worst of vices."[6] Although it is said by one traveler that the Todas "practice dissimulation toward Europeans, yet he recognizes this as a trait consequent on their intercourse with Europeans."[7] The Bheels, which were said to be "a race of unmitigated savages, without any sense of natural religion." [8] and "which have preserved their rude habits and manners to the present day," are "yet imbued with a sense of truth and honor strangely at contrast with their external character."[9] Bishop Heber says that "their word is more to be depended on than that of their conquerors."[10] Of the Sowrahs it is said: "A pleasing feature in their character is their complete truthfulness. They do not know how to tell a lie."[11] Indeed, as Mr. Spencer sums up the case on this point, there are Hill Tribes in India "originally distinguished by their veracity, but who are rendered less veracious by contact with the whites. 'So rare is lying among these aboriginal races when unvitiated by the 'civilized,' that of those in Bengal, Hunter singles out the Tipperahs as 'the only Hill Tribe in which this vice is met with.'"[12]

[Footnote 1: Glasfurd, cited in _Cycl. of Descrip. Sociol_., V., 32.]

[Footnote 2: Forsyth, _Ibid_.]

[Footnote 3: Macpherson, cited in _Ibid_.]

[Footnote 4: _Ibid_.]

[Footnote 5: Sherwill, cited in _Ibid_.]

[Footnote 6: Harkness, cited in _Cycl. of Descrip. Sociol_., V., 31.]

[Footnote 7: Spencer's _Principles of Sociology_, II., 234.]

[Footnote 8: Marshman, cited in _Cycl. of Descrip. Sociol_., V., 31.]

[Footnote 9: Wheeler, cited in _Ibid_.]

[Footnote 10: Cited in _Ibid_.]

[Footnote 11: Shortt, cited in _Ibid_.]

[Footnote 12: Spencer's _Principles of Sociology_, II., 234 ff.]

The Arabs are more truthful in their more primitive state than where they are influenced by "civilization," or by dealings with those from civilized communities.[1] And the same would seem to be true of the American Indians.[2] Of the Patagonians it is said: "A lie with them is held in detestation." [3] "The word of a Hottentot is sacred;" and the good quality of "a rigid adherence to truth," "he is master of in an eminent degree."[4] Dr. Livingstone says that lying was known to be a sin by the East Africans "before they knew aught of Europeans or their teaching."[5] And Mungo Park says of the Mandingoes, among the inland Africans, that, while they seem to be thieves by nature," one of the first lessons in which the Mandingo women instruct their children is _the practice of truth_." The only consolation of a mother whose son had been murdered, "was the reflection that the poor boy, in the course of his blameless life, _had never told a lie_."[6] Richard Burton is alone among modern travelers in considering lying natural to all primitive or savage peoples. Carl Bock, like other travelers, testifies to the unvarying truthfulness of the Dyaks in Borneo,[7] and another observant traveler tells of the disgrace that attaches to a lie in that land, as shown by the "lying heaps" of sticks or stones along the roadside here and there. "Each heap is in remembrance of some man who has told a stupendous lie, or failed in carrying out an engagement; and every passer-by takes a stick or a stone to add to the accumulation, saying at the time he does it, 'For So-and-so's lying heap.' It goes on for generations, until they sometimes forget who it was that told the lie, but, notwithstanding that, they continue throwing the stones."[8] What a blocking of the paths of civilization there would be if a "lying heap" were piled up wherever a lie had been told, or a promise had been broken, by a child of civilization!

[Footnote 1: Denham, and Palgrave, cited in _Cycl. of Des. Social_., V., 30,31.]

[Footnote 2: See Morgan's _League of the Iroquois_, p. 335; also Schoolcraft, and Keating, on the Chippewas, cited in _Cycl. of Descrip. Sociol_., VI., 30.]

[Footnote 3: Snow, cited in _Ibid_.]

[Footnote 4: Kolben, and Barrow, cited in _Cycl. of Descrip. Sociol_., IV., 25.]

[Footnote 5: _Cycl. of Descrip. Sociol_., IV., 26.]

[Footnote 6: _Cycl. of Descrip. Social_., IV., 27.]

[Footnote 7: _Head Hunters of Borneo_, p. 209. See also Boyle, cited in Spencer's _Cycl. of Descrip. Social_., III., 35.]

[Footnote 8: St. John's _Life in the Forests of the Far East_, I., 88 f.]

The Veddahs of Ceylon, one of the most primitive of peoples, "are proverbially truthful."[1] The natives of Java are peculiarly free from the vice of lying, except in those districts which have had most intercourse with Europeans.[2]

[Footnote 1: Bailey, cited in Spencer's _Cycl. of Descrip. Social_., III., 32.]

[Footnote 2: Earl, and Raffles, cited in _Ibid_., p. 35.]

It is found, in fact, that in all the ages, the world over, primitive man's highest ideal conception of deity has been that of a God who could not tolerate a lie; and his loftiest standard of human action has included the readiness to refuse to tell a lie under any inducement, or in any peril, whether it be to a friend or to an enemy. This is the teaching of ethnic conceptions on the subject. The lie would seem to be a product of civilization, or an outgrowth of the spirit of trade and barter, rather than a natural impulse of primitive man. It appeared in full flower and fruitage in olden time among the commercial Phoenicians, so prominently that "Punic faith" became a synonym of falsehood in social dealings.

Yet it is in the face of facts like these that a writer like Professor Fowler baldly claims, in support of the same presupposed theory as that of Lecky, that "it is probably owing mainly to the development of commerce, and to the consequent necessity, in many cases, of absolute truthfulness, that veracity has come to take the prominent position which it now occupies among the virtues; though the keen sense of honor, engendered by chivalry, may have had something to do in bringing about the same result."[1]

[Footnote 1: _Principles of Morality_, II., 220.]

III.

BIBLE TEACHINGS.

In looking at the Bible for light in such an investigation as this, it is important to bear in mind that the Bible is not a collection of specific rules of conduct, but rather a book of principles illustrated in historic facts, and in precepts based on those principles,--announced or presupposed. The question, therefore, is not, Does the Bible authoritatively draw a line separating the truth from a lie, and making the truth to be always right, and a lie to be always wrong? but it is, Does the Bible evidently recognize an unvarying and ever-existing distinction between a truth and a lie, and does the whole sweep of its teachings go to show that in God's sight a lie, as by its nature opposed to the truth and the right, is always wrong?

The Bible opens with a picture of the first pair in Paradise, to whom God tells the simple truth, and to whom the enemy of man tells a lie; and it shows the ruin of mankind wrought by that lie, and the author of the lie punished because of its telling.[1] The Bible closes with a picture of Paradise, into which are gathered the lovers and doers of truth, and from which is excluded "every one that loveth and doeth a lie;"[2] while "all liars" are to have their part "in the lake that burneth with fire and brimstone; which is the second death."[3] In the Old Testament and in the New, God is represented as himself the Truth, to whom, by his very nature, the doing or the speaking of a lie is impossible,[4] while Satan is represented as a liar and as the "father of lies."[5]

[Footnote 1: Gen. 2, 3.]

[Footnote 2: Rev. 22.]

[Footnote 3: Rev. 21: 5-8.]

[Footnote 4: Psa. 31:5; 146:6; John 14:6; Num. 23:19; 1 Sam. 15:29; Titus 1:2; Heb. 6:18; 1 John 5:7.]

[Footnote 5: John 8:44.]

While the human servants of God, as represented in the Bible narrative, are in many instances guilty of lying, their lies are clearly contrary to the great principle, in the light of which the Bible itself is written, that a lie is always wrong, and that it cannot have justification in God's sight. The idea of the Bible record is that God is true, though every man were a liar.[1] God is uniformly represented as opposed to lies and to liars, and a lie in his sight is spoken of as a lie unto him, or as a lie against him. In the few cases where the Bible narrative has been thought by some to indicate an approval by the Lord of a lie, that was told, as it were, in his interest, an examination of the facts will show that they offer no exception to the rule that, by the Bible standard, a lie is never justifiable.

[Footnote 1: Rom. 3:4.]

Take, for example, the case of the Hebrew midwives, who lied to the officials of Pharaoh, when they were commanded to kill every Hebrew male child;[1] and of whom it is said that "God dealt well with the midwives;... and ... because the midwives feared God,... he made them houses."[2] Here it is plain that God commended their fear of him, not their lying in behalf of his people, and that it was "because the midwives feared God" not because they lied, "that he made them houses." It was their choice of the Lord above the gods and rulers of Egypt that won them the approval of the Lord, even though they were sinners in being liars; as in an earlier day it was the approval of Jacob's high estimate of the birthright, and not the deceits practiced by him on Esau and his father Isaac, that the Lord showed in confirming a blessing to Jacob.[3]

[Footnote 1: Exod. 1: 15-19.]

[Footnote 2: Exod. I: 20, 21.]

[Footnote 3: Gen. 25: 27-34; 27; 1-40; 28: 1-22]

So, also, in the narrative of Rahab, the Canaanitish young woman, who concealed the Israelitish spies sent into her land by Joshua, and lied about them to her countrymen, and who was commended by the Lord for her faith in this transaction.[1] Rahab was a harlot by profession and a liar by practice. When the Hebrew spies entered Jericho, they went to her house as a place of common resort. Rahab, on learning who they were, expressed her readiness, sinner as she was, to trust the God of Israel rather than the gods of Canaan; and because of her trust she put herself, with all her heathen habits of mind and conduct, at the disposal of the God of Israel, and she lied, as she had been accustomed to lie, to her own people, as a means of securing safety to her Hebrew visitors. Because of her faith, which was shown in this way, but not necessarily because of her way of showing her faith, the Lord approved of her spirit in choosing his service rather than the service of the gods of her people. The record of her approval is, "By faith Rahab the harlot perished not with them that were disobedient, having received the spies with peace."[2]

[Footnote 1: Josh. 2: 1-21.]

[Footnote 2: Heb. II: 31.]

It would be quite as fair to claim that God approved of Rahab's harlotry, in this case, as to claim that he approved of her lying. Rahab was a harlot and a liar, and she was ready to practice in both these lines in the service of the spies. She was not to be commended for either of those vices; but she was to be commended in that, with all her vices, she was yet ready to give herself just as she was, and with her ways as they were, to Jehovah's side, in the crisis hour of conflict between him and the gods of her people. It was the faith that prompted her to this decision that God commended; and "by faith" she was preserved from destruction when her people perished.

Another case that has been thought to imply a divine approval of an untrue statement, is that of Samuel, when he went to Bethlehem to anoint David as Saul's successor on the throne of Israel, and, at the Lord's command, said he had come to offer a sacrifice to God.[1] But here clearly the narrative shows no lie, nor false statement, made or approved. Samuel, as judge and prophet, was God's representative in Israel. He was accustomed to go from place to place in the line of his official ministry, including the offering at times of sacrifices of communion.[2] When, on this occasion, the Lord told Samuel of his purpose of designating a son of Jesse to succeed Saul on the throne, and desired him to go to Bethlehem for further instructions, Samuel was unnecessarily alarmed, and said, in his fear, "How can I go? if Saul hear it, he will kill me." The Lord's simple answer was, "Take an heifer with thee, and say, I am come to sacrifice to the Lord. And call Jesse to the sacrifice, and I will shew thee what thou shalt do: and thou shalt anoint unto me him whom I name unto thee."

[Footnote 1: 1 Sam. 16: 1-3.]

[Footnote 2: 1 Sam. 7: 15-17; 9: 22-24; 11: 14,15; 20:29.]

In other words, the Lord said to Samuel, I want you to go to Bethlehem as my representative, and offer a sacrifice there. Say this fearlessly. In due time I will give you other directions; but do not borrow trouble on account of them. Do your duty step by step. Speak out the plain truth as to all that the authorities of Bethlehem have any right to know; and do not fear any harm through my subsequent private revelations to you. In these directions of the Lord there is no countenance of the slightest swerving from the truth by Samuel; nor is there an authorized concealment of any fact that those to whom Samuel was sent had any claim to know.

Still another Bible incident that has been a cause of confusion to those who did not see how God could approve lying, and a cause of rejoicing to those who wanted to find evidence of his justification of that practice, is the story of the prophet Micaiah, saying before Jehoshaphat and Ahab that the Lord had put a lying spirit into the mouths of all the false prophets who were at that time before those kings.[1] Herbert Spencer actually cites this incident as an illustration of the example set before the people of Israel, by their God, of lying as a means of accomplishing a desired end.[2] But just look at the story as it stands!

[Footnote 1: 1 Kings 22: 1-23; 2 Chron. 18: 1-34.]

[Footnote 2: _The Inductions of Ethics_, p. 158.]

Four hundred of Ahab's prophets were ready to tell him that a campaign which he wanted to enter upon would be successful. Micaiah, an honest prophet of the Lord, was sent for at Jehoshaphat's request, and was urged by the messenger to prophesy to the same effect as Ahab's prophets. Micaiah replied that he should give the Lord's message, whether it was agreeable or not to Ahab. He came, and at first he spoke satirically as if he agreed with the other prophets in deeming the campaign a hopeful one. It was as though he said to the king, You want me to aid you in your plans, not to give you counsel from the Lord; therefore I will say, as your prophets have said, Go ahead, and have success. It was evident, however, to Ahab, that the prophet's words were not to be taken literally, but were a rebuke to him in Oriental style, and therefore he told the prophet to give him the Lord's message plainly. Then the prophet gave a parable, or a message in Oriental guise, showing that these four hundred prophets of Ahab were speaking falsely, as if inspired by a lying spirit, and that, if Ahab followed their counsel, he would go to his ruin.

To cite this parable as a proof of Jehovah's commendation of lying is an absurdity. Jehovah's prophet Micaiah was there before the king, telling the simple truth to the king. And, in order to meet effectively the claim of the false prophets that they were inspired, he related, as it were, a vision, or a parable, in which he declared that he had seen preparations making in heaven for their inspiring by a lying spirit. This was, as every Oriental would understand it, a parliamentary way of calling the four hundred prophets a pack of liars; and the event proved that all of them were liars, and that Micaiah alone, as Jehovah's prophet, was a truth-teller. What folly could be greater than the attempt to count this public charge against the lying prophets as an item of evidence in proof of the Lord's responsibility for their lying--which the Lord's prophet took this method of exposing and rebuking!

There are, indeed, various instances in the Bible story of lies told by men who were in favor with God, where there is no ground for claiming that those lies had approval with God. The men of the Bible story are shown as men, with the sins and follies and weaknesses of men. Their conduct is to be judged by the principles enunciated in the Bible, and their character is to be estimated by the relation which they sustained toward God in spite of their human infirmities.

Abraham is called the father of the faithful,[1] and he was known as the friend of God.[2] But he indulged in the vice of concubinage,[3] in accordance with the loose morals of his day and of his surroundings; and when he was down in Egypt he lied through his distrust of God, apparently thinking that there was such a thing as a "lie of necessity," and he brought upon himself the rebuke of an Egyptian king because of his lying.[4] But it would be folly to claim that God approved of concubinage or of lying, because a man whom he was saving was guilty of either of these vices. Isaac also lied,[5] and so did Jacob;[6] but it was not because of their lies that these men had favor with God. David was a man after God's own heart[7] in his fidelity of spirit to God as the only true God, in contrast with the gods of the nations round about

Israel; but David lied,[8] as David committed adultery.[9] It would hardly be claimed, however, that either his adultery or his lying in itself made David a man after God's own heart. So all along the Bible narrative, down to the time when Ananias and Sapphira, prominent among the early Christians, lied unto God concerning their very gifts into his treasury, and were struck dead as a rebuke of their lying.[10]

[Footnote 1: Josh. 24:3; Isa. 51: 2; Matt. 3: 9; Rom. 4:12; Gal. 3:9]

[Footnote 2: 2 Chron. 20: 7; Isa. 41: 8; Jas. 2: 23.]

[Footnote 3: Gen. 16: 1-6.]

[Footnote 4: Gen. 12: 10-19.]

[Footnote 5: Gen. 26: 6-10.]

[Footnote 6: Gen. 27: 6-29.]

[Footnote 7: 1 Sam. 11: 1-27]

[Footnote 8: 1 Sam. 21: 1,2.]

[Footnote 9: 2 Sam. 11: 1-27.]

[Footnote 10: Acts 5: 1-11.]

The whole sweep of Bible teaching is opposed to lying; and the specific injunctions against that sin, as well as the calls to the duty of truth-speaking, are illustrative of that sweep. "Ye shall not steal; neither shall ye deal falsely, nor lie one to another,"[1] says the Lord, in holding up the right standard before his children. "A lying tongue" is said to be "an abomination" before the Lord.[2] "A faithful witness will not lie: but a false witness breatheth out lies,"[3] says Solomon, in marking the one all-dividing line of character; and as to the results of lying he says, "He that breatheth out lies shall not escape,"[4] and "he that breatheth out lies shall perish."[5] And he adds the conclusion of wisdom, in view of the supposed profit of lying, "A poor man is better than a liar;"[6] that is, a truth-telling poor man is better than a rich liar.

[Footnote 1: Lev. 19:11.]

[Footnote 2: Prov. 6:16, 17.]

[Footnote 3: Prov. 14:5.]

[Footnote 4: Prov. 19:5.]

[Footnote 5: Prov. 19:9.]

[Footnote 6: Prov. 19:22.]

The inspired Psalms are full of such teachings: "The wicked are estranged from the womb: they go astray as soon as they be born, speaking lies."[1] "They delight in lies."[2] "The mouth of them that speak lies shall be stopped."[3] "He that speaketh falsehood shall not be established before mine [the Psalmist's] eyes."[4] And the Psalmist prays, "Deliver my soul, O Lord, from lying lips."[5] In the New Testament it is much the same as in the Old. "Lie not one to another; seeing that ye have put off the old man with his doings,"[6] is the apostolic injunction; and again, "Speak ye truth

each one with his neighbor: for we are members one of another."[7] There is no place for a lie in Bible ethics, under the earlier dispensation or the later.

[Footnote 1: Psa. 58:3.]

[Footnote 2: Psa. 62:4.]

[Footnote 3: Psa. 63:11.]

[Footnote 4: Psa. 101: 7.]

[Footnote 5: Psa. 120: 2.]

[Footnote 6: Col. 3: 9.]

[Footnote 7: Eph. 4: 25.]

IV.

DEFINITIONS.

It would seem to be clear that the Bible, and also the other sacred books of the world, and the best moral sense of mankind everywhere, are united in deeming a lie incompatible with the idea of a holy God, and consistent only with the spirit of man's arch-enemy--the embodiment of all evil. Therefore he who, admitting this, would find a place in God's providential plan for a "lie of necessity" must begin with claiming that there are lies which are not lies. Hence it is of prime importance to define a lie clearly, and to distinguish it from allowable and proper concealments of truth.

A lie, in its stricter sense, is the affirming, by word or by action, of that which is not true, with a purpose of deceiving; or the denying, by word or by action, of that which is true, with a purpose of deceiving. But the suppressing or concealing of essential facts, from one who is entitled to know them, with a purpose of deceiving, may practically amount to a lie.

Obviously a lie may be by act, as really as by word; as when a man is asked to tell the right road, and he silently points in the wrong direction. Obviously, also, the intention or purpose of deceiving is in the essence of the lie; for if a man says that which is not true, supposing it to be true, he makes a misstatement, but he does not lie; or, again, if he speaks an untruth playfully where no deception is wrought or intended, as by saying, when the mercury is below zero, that it is "good summer weather," there is no lie in the patent untruth.

So far all are likely to be agreed; but when it comes to the question of that concealment which is in the realm of the lie, as distinct from right and proper concealment, there is more difficulty in making the lines of distinction clear to all minds. Yet those lines can be defined, and it is important that they should be.

A witness on the stand in a court of law is bound by his oath, or his affirmation, to tell "the truth, the whole truth, and nothing but the truth," in the testimony that he gives in response to the questions asked of him. If, therefore, in the course of his testimony, he declares that he received five dollars for his share in a certain

transaction, when in reality he received five hundred dollars, his concealment of the fact that he received a hundred times as much as he admits having received, is practically a lie, and is culpable as such. Any intentional concealment of essential facts in the matter at issue, in his answers to questions asked of him as a witness, is a lie in essence.

But a person who is not before a court of justice is not necessarily bound to tell all the facts involved to every person whom he addresses, or who desires to have him do so; and therefore, while a concealment of facts which ought to be disclosed may be equivalent to a lie, there is such a thing as the concealment of facts which is not only allowable, but which is an unmistakable duty. And to know when concealment is right, and when it is wrong, is to know when concealment partakes of the nature of a lie, and when it is a totally different matter.

Concealment, so far from being in itself a sin, is in itself right; it is only in its misuse that it becomes reprehensible in a given case. Concealment is a prime duty of man; as truly a duty as truth-speaking, or chastity, or honesty. God, who cannot lie to his creatures, conceals much from his creatures. "The secret things belong unto the Lord our God: but the things that are revealed belong unto us and to our children for ever,"[1] says the author of Deuteronomy; and the whole course of God's revelation to man is in accordance with this announced principle of God's concealment of that which ought to be concealed. He who is himself the revelation of God says to his chosen disciples, even when he is speaking his latest words to them before his death: "I have yet many things to say unto you, but ye cannot bear them now;"[2] and he conceals what, as yet, it is better for them should remain concealed.

[Footnote 1: Deut. 29: 29.]

[Footnote 2: John 16:12.]

There is a profound meaning in the suggestion, in the Bible story of man's "fall," that, when man had come to the knowledge of good and evil, the first practical duty which he recognized as incumbent upon himself, was the duty of concealment;[1] and from that day to this that duty has been incumbent on him. Man has a duty to conceal his besetting impurities of thought and inclinations to sin; to conceal such of his doubts and fears as would dishearten others and weaken himself by their expression; to conceal his unkindnesses of spirit and his unjust prejudices of feeling; to conceal, in fact, whatever of his innermost personality is liable to work harm by its disclosure, and to a knowledge of which his fellows have no just claim. In the world as it is, there is more to be concealed than to be disclosed in every individual life; and concealment rather than disclosure is the rule of personal action.

[Footnote 1: Gen. 3:6, 7.]

Absolute and unrestricted frankness in social intercourse would be brutal. The speaking of the whole truth at all times and to everybody could have neither justification nor excuse between man and man. We have no right to tell our fellows all that we think of them, or fear for them, or suspect them of. We have no right to betray the confidences of those who trust us, or to disclose to all the fact that we have such confidences to conceal. We have no right to let it be generally known that there

are such peculiar struggles within us as make our lives a ceaseless battle with temptations and fears and doubts. There is such a thing as an indecent exposure of personal opinions, and as a criminal disclosure of the treasures of the inner life.[1] How to conceal aright that which ought to be concealed, is one of the vital questions of upright living.

[Footnote 1: See 2 Kings 20: 12-19.]

The duty of right concealment stands over against the sin of lying. Whatever ought to be concealed, should be concealed, if concealment is a possibility without sinning. But the strongest desire for concealment can never justify a lie as a means of concealment; and concealment at the cost of a lie becomes a sin through the means employed for its securing. On the other hand, when disclosure is a duty, concealment is sinful, because it is made to stand in the way of the performance of a duty. Concealment is not in itself wrong, but it may become wrong through its misuse. Lying is in itself wrong, and it cannot be made right through any seeming advantage to be gained by it.

Concealment which is right in one instance may be wrong in another instance, the difference being in the relations of the two parties in the case. A man who has lost a leg or an eye may properly conceal from others generally the fact of his loss by any legitimate means of concealment. His defect is a purely personal matter. The public has no claim upon him for all the facts in the premises. He may have an artificial limb or an artificial eye, so constructed as to conceal his loss from the ordinary observer. There is nothing wrong in this. It is in the line of man's primal duty of concealment. But if a man thus disabled were applying for a life-insurance policy, or were an applicant for re-enlistment in the army, or were seeking employment where bodily wholeness is a requisite, it would be his duty to make known his defect; and the concealment of it from the parties interested would be in the realm of the lie.

So, again, if a man were proposing marriage, or were entering into confidential relations with a partner in business, or were seeking financial aid from a bank, he would have no right to conceal from the party interested many a fact which he could properly conceal from the public.

A man who would be justified in concealing from the general public his mental troubles, or his business embarrassments, or his spiritual perplexities, could not properly conceal the essential facts in the case from his chosen adviser in medicine, or in law, or in matters of religion. It is a man's duty to disclose the whole truth to him who has a right to know the whole truth. It is a man's right, and it may become his duty, to conceal a measure of the truth from one who is not entitled to know that portion of the truth, so far as he can properly make concealment. But as a lie is never justifiable, it is never a proper means of concealment; and if concealment be, in any case, a mode of lying, it is as bad as any other form of lying.

But concealment, even when it is of facts that others have no right to know, may cause others to be deceived, and deliberate deceit is one form of a lie. How, then, can concealment that is sure to result in deception be free from the sin that invariably attaches to a lie in any form, or of any nature whatsoever?

Concealment which is for the _purpose_ of deception, is one thing; concealment which is only for the purpose of concealment, but which is sure to _result_ in deception, is quite another thing. The one is not justifiable, the other may be. In the one case it is a man's purpose to deceive his fellow-man; in the other case it is simply his purpose to conceal what his fellow-man has no right to know, and that fellow-man receives a false impression, or deceives himself, in consequence.

We may, or we may not, be responsible for the obvious results of our action; and the moral measure of any action depends on the measure of our responsibility in the premises. A surgeon, who is engaged in an important and critical operation, is told that he is wanted elsewhere in a case of life and death. If he sees it to be his duty to continue where he is because he cannot safely leave this case at this time, he obviously is not responsible for results which come because of his absence from the side of the other sufferer. A man is by a river bank when a boy is sinking before his eyes. If the man were to reach out his arms to him, the boy might be saved. But the man makes no movement in the boy's behalf, and the boy drowns. It might seem as though that man were responsible for that boy's death; but when it is known that the man is at that moment occupied in saving the life of his own son, who is also struggling in the water, it will have to be admitted that the father is not responsible for the results of his inaction in another sphere than that which is for the moment the sphere of his imperative duty.

If a wife and mother has to choose between her loving ministry to her sick husband and to her sick child, and she chooses that which she sees to be the more important duty of the hour, she is not responsible for any results that follow from her inability to be in two places at the same time. A man with a limited income may know that ten families are in need of money, while he can give help to only two of them. Even though others starve while he is supplying food to all whom he can aid, he is not responsible for results that flow from his decision to limit his ministry to his means.

In all our daily life, our decision to do the one duty of the hour involves our refusal to do what is not our duty, and we have no responsibility for the results which come from such a refusal. So in the matter of the duty of concealment, if a man simply purposes the concealment from another of that which the other has no right to know, and does not specifically affirm by word or act that which is not true, nor deny by act or word that which is true, he is in no degree responsible for the self-deception by another concerning a point which is no proper concern of that other person.

Others are self-deceived with reference to us in many things, beyond our responsibility or knowledge. We may be considered weaker or stronger, wiser or more simple, younger or older, gladder or sadder, than we are; but for the self-deception on that point by the average observer we are not responsible. We may not even be aware of it. It is really no concern of ours--or of our neighbor's. It is merely an incident of human life as it is. We may have an aching tooth or an aching heart, and yet refrain from disclosing this fact in the expression of our face. In such a case we merely conceal what is our own possession from those who have no claim to know it. Even though they deceive themselves as to our condition in consequence of our looks, we are not responsible for their self-deception, because they are not

possessed of all the facts, nor have they any right to them, nor yet to a fixed opinion in the case.

If a man were to have a patch put on his coat, he might properly have it put on the under side of the coat instead of the outer side, thus making what is called "a blind patch," for the purpose of concealing the defect in his garment. Even though this course might result in a false impression on the mind of the casual observer, the man would not be blameworthy, as he would be if he had pursued the same course with a purpose of deceiving a purchaser of the coat. So, again, in the case of a mender of bric-a-brac: it would be right for him to cement carefully the parts of a broken vase for the mere purpose of concealing its damaged condition from the ordinary eye, but not for the purpose of deceiving one who would be a purchaser.

A man whose city house is closed from the public in the summer season, because of his absence in the country, has a perfect right to come to that house for a single night, without opening the shutters and lighting up the rooms in intimation of his presence. He may even keep those shutters closed while his room is lighted, for the express purpose of concealing the fact of his presence there, and yet not be responsible for any false impression on the minds of passers-by, who think that the proprietor is still in the country, and that the city house is vacant. On the other hand, if the house be left lighted up all through the night, with the shutters open, while the inmates are asleep, for the very purpose of concealing from those outside the fact that no one in the house is awake and on guard, the proprietor is not responsible for any self-deception which results to those who have no right to know the facts in the case.

And so, again, in the matter of having a man's hat or coat on the rack in the front hall, while there are only women in the house, the sole purpose of the action may be the concealment of the real condition of affairs from those who have no claim to know the truth, and not the deliberate deception of any party in interest. In so far as the purpose is merely the concealment from others of the defenseless condition of the house the action is obviously a proper one, notwithstanding its liability to result in false impressions on the minds of those who have no right to an opinion in the case.

While a man would be justified in concealing, without falsehood, the fact of a bodily lack or infirmity on his part which concerned himself alone, he would not be justified in concealing the fact that he was sick of a contagious disease, or that his house was infected by a disease that might be given to a caller there. Nor would he be justified in concealing a defect in a horse or a cow in order to deceive a man into the purchase of that animal as a sound one, any more than he would be justified in slightly covering an opening in the ground before his house, so as to deceive a disagreeable visitor into stumbling into that hole.

It would be altogether proper for a man with a bald head to conceal his baldness from the general public by a well-constructed wig. It would likewise be proper for him to wear a wig in order to guard his shining pate against flies while at church in July, or against danger from pneumonia in January, even though wide-awake children in the neighboring pews deceived themselves into thinking that he had a fine head of

natural hair. But if that man were to wear that wig for the purpose of deceiving a young woman, whom he wished to marry, as to his age and as to his freedom from bodily defects, it would be quite a different matter. Concealment for the mere purpose of concealment may be, not only justifiable, but a duty. Concealment for the purpose of deception is never justifiable.

It would seem that this is the principle on which God acts with reference to both the material and the moral universe. He conceals facts, with the result that many a man is self-deceived, in his ignorance, as to the size of the stars, and the cause of eclipses, and the processes of nature, and the consequences of conduct, in many an important particular. But man, and not God, is responsible for man's self-deception concerning points at which man can make no claim to a right to know all the truth.

It is true that this distinction is a delicate one, but it is a distinction none the less real on that account. A moral line, like a mathematical line, has length, but neither breadth nor thickness. And the line that separates a justifiable concealment which causes self-deception on the part of those who are not entitled to know the whole truth in the matter, and the deliberate concealment of truth for the specific purpose of deception, is a line that runs all the way up from the foundations to the summit of the universe. This line of distinction is vital to an understanding of the question of the duty of truth-speaking, and of the sin of lying.

An effort at right concealment may include truthful statements which are likely, or even sure, to result in false impressions on the mind of the one to whom they are addressed, and who in consequence deceives himself as to the facts, when the purpose of those statements is not the deception of the hearer. A husband may have had a serious misunderstanding with his wife that causes him pain of heart, so that his face gives sign of it as he comes out of the house in the morning. The difficulty which has given him such mental anxiety is one which he ought to conceal. He has no right to disclose it to others. Yet he has no right to speak an untruth for the purpose of concealing that which he ought to conceal.

It may be that the mental trouble has already deprived him of sleep, and has intensified his anxiety over a special business matter that awaits his attention down town, and that all this shows in his face. If so, these facts are secondary but very real causes of his troubled look, as he meets a neighbor on leaving his house, who says to him: "You look very much troubled this morning. What's the matter with you?" Now, if he were to say in reply, "Then my looks belie me; for I have no special trouble," he would say what was not true. But he might properly say, "I think it is very likely. I didn't sleep well last night, and I am very tired this morning. And I have work before me to-day that I am not easy about." Those statements being literally true, and being made for the purpose of concealing facts which his questioner has no right to know, their utterance is justifiable, regardless of the workings of the mind of the one who hears them. They are made in order to conceal what is back of them, not in order to deceive one who is entitled to know those primary facts.

If, again, a physician in attendance on a patient sees that there is cause for grave anxiety in the patient's condition, and deems it important to conceal his fears, so far

as he can without untruthfulness, he may, in answer to direct questions from his patient, give truthful answers that are designed to conceal what he has a right to conceal, without his desiring to deceive his patient, and without his being responsible for any self-deception on his patient's part that results from their conversation. The patient may ask, "Doctor, am I very sick?" The doctor may answer truthfully, "Not so sick as you might be, by a good deal." He may give this answer with a cheerful look and tone, and it may result in calming the patient's fears.

If, however, the patient goes on to ask, "But, doctor, do you think I'm going to die?" the doctor may respond lightly, "Well, most of us will die sooner or later, and I suppose you are not to be exempt from the ordinary lot of mortals." "But," continues the patient, "do you think I am going to die of this disease?" Then the doctor can say, seriously and truthfully, "I'm sure I don't know. The future is concealed from me. You may live longer than I do. I certainly hope you are not going to die yet awhile, and I'm going to do all I can to prevent it." All this would be justifiable, and be within the limits of truthfulness. Concealment of the opinions of the physician as to the patient's chances of life, and not the specific deception of the patient, is the object of these answers.

In no event, however, would the physician be justified in telling a lie, any more than he would be in committing any other sin, as a means of good. He is necessarily limited by the limits of right, in the exercise of his professional skill, and in the choice of available means. He is in no wise responsible for the consequences of his refusal to go beyond those limits.

Concealment may be, or may not be, of the nature of deception. Concealment is not right when disclosure is a duty. Concealment of that which may properly be concealed is not in itself wrong. Efforts at concealment must, in order to be right, be kept within the limits of strict truthfulness of statement. Concealment for the purpose of deception is in the realm of the lie. Concealment for the mere purpose of concealment may be in the realm of positive duty--in the sight of God and for the sake of our fellows.

It is to be borne in mind that the definitions here given do not pivot on the specific illustrations proffered for their explanation. If, in any instance, the illustration seems inapt or imperfect, it may be thrown aside, and reference made to the definition itself. The definition represents the principle involved; the illustration is only a suggestion of the principle.

V.

THE PLEA OF "NECESSITY."

The story is told of an old Quaker, who, after listening for a time to the unstinted praises, by a dry-goods salesman, of the various articles he was trying to dispose of, said quietly: "Friend, it is a great pity that lying is a sin, since it seems so necessary in thy business." It has been generally supposed that this remark of the old Quaker was a satirical one, rather than a serious expression of regret over the clashing of the

demands of God's nature with the practical necessities of men. Yet, as a matter of fact, there are moral philosophers, and writers on Christian ethics, who seem to take seriously the position assumed by this Quaker, and who argue deliberately that there are such material advantages to be secured by lying, in certain emergencies, that it would be a great pity to recognize any unvarying rule, with reference to lying, that would shut off all possibility of desired gain from this practice under conditions of greatest urgency.

It is claimed that lying proffers such unmistakable advantages in time of war, and of sickness, and in dealings with would-be criminals and the insane, and other classes exempt from ordinary social consideration, that lying becomes a necessity when the gain from it is of sufficient magnitude. Looked at in this light, lying is not sinful _per se_, but simply becomes sinful by its misuse or untimeliness; for if it be sinful _per se_, no temporary or material advantage from its exercise could ever make it other than sinful.

If, indeed, the rightfulness of lying is contingent on the results to be hoped for or to be feared from it, the prime question with reference to it, in a moral estimate of its propriety, is the limit of profit, or of gain, which will justify it as a necessity. But with all that has been written on this subject in the passing centuries, the advocates of the "lie of necessity" have had to contend with the moral sense of the world as to the sinfulness of lying, and with the fact that lying is not merely a violation of a social duty, but is contrary to the demands of the very nature of God, and of the nature of man as formed in the image of God. And it has been the practice of such advocates to ignore or to deny the testimony of this moral sense of the race, and to persist in looking at lying mainly in the light of its social aspects.

That the moral sense of the race is against the admissibility of the rightfulness of lying, is shown by the estimate of this sin as a sin in the ethnic conceptions of it, even among peoples who indulge freely in its practice, as well as in the teachings of the sacred books of the ages. And, moreover, it is _not_ the fact, as is often claimed, that lying is generally admitted to be allowable between enemies in war time, or by a physician to his patient, or by a sane man to one who is insane, or in order to the prevention of crime, or for the purpose of securing some real or supposed advantage in any case.

The right to conceal from the enemy one's weakness, or one's plans, by any exhibit of "quaker guns," or of mock fortifications, or of movements and counter-movements, or of feints of attack, or of surplus watchfires, in time of warfare, is recognized on all sides. But the right to lie to or to deceive the enemy by sending out a flag of truce, as if in desire for a peaceful conference, and following it up with an attack on his lines in an unsuspecting moment, is not admitted in any theory of "civilized warfare." And while a scout may creep within the enemy's lines, and make observations of the enemy's weakness and strength of position, without being open to any charge of dishonorable conduct,--if he comes disguised as a soldier of the other side than his own, or if he claims to be a mere civilian or non-combatant, he is held to be a "spy," and as such he is denied a soldier's death, and must yield his life on the gallows as a deceiver and a liar.

The distinction between justifiable concealment for the mere purpose of concealment, and concealment for the express purpose of deceiving, is recognized as clearly in warfare as in peaceful civil life; and the writer on Christian ethics who appeals to the approved practices of warfare in support of the "lie of necessity" can have only the plea of ignorance as an excuse for his baseless argument.

An enemy in warfare has no right to know the details of his opponent's plans for his overcoming; but his opponent has no right to lie to him, by word or action, as a means of concealment; for a lie is never justifiable, and therefore is never a necessity. And this is admitted in the customs of honorable warfare. Illustrations of this distinction are abundant. A Federal officer, taken prisoner in battle, was brought before a Confederate officer for examination. He was asked his name, his rank, his regiment, his brigade, his division, and his corps. To all these questions he gave truthful answers promptly; for the enemy had a right to information at these points concerning a prisoner of war. But when the question came, "What is the present strength of your corps?" he replied, "Two and a half millions." "That cannot be true," said the Confederate officer. "Do you expect me to tell you the truth, Colonel, in such a matter?" he responded, in reminder of the fact that it was proper for him to conceal facts which the other had no right to know; and his method of concealment was by an answer that was intended to conceal, but not to deceive.

In Libby Prison, during war time, the attempt to prevent written messages being carried out by released prisoners was at first made by the careful examination of the clothing and persons of such prisoners; but this proved to be ineffectual. Then it was decided to put every outgoing prisoner on his word of honor as a soldier in this matter; and that was effectual. A true soldier would require something more than the average treatise on Christian ethics to convince him that a lie to an enemy in war time is justifiable as a "lie of necessity," on the ground of its profitableness.

In dealing with the sick, however desirable it may be, in any instance, to conceal from a patient his critical condition, the difference must always be observed between truthful statements that conceal that which the physician, or other speaker, has a right to conceal, and statements that are not strictly true, or that are made for the explicit purpose of deceiving the patient. It is a physician's duty to conceal from a patient his sense of the grave dangers disclosed to his professional eye, and which he is endeavoring to meet successfully. And, in wellnigh every case, it is possible for him to give truthful answers that will conceal from his patient what he ought to conceal; for the best physician does not know the future, and his professional guesses are not to be put forward as if they were assured certitudes.

If, indeed, it were generally understood, as many ethical writers are disposed to claim, that physicians are ready to lie as a help to their patients' recovery, physicians, as a class, would thereby be deprived of the power of encouraging their patients by words of sincere and hearty confidence. There are physicians whose most hopeful assurances are of little or no service to their patients, because those physicians are known to be willing to lie to a patient in an emergency; and how can a timid patient be sure that his case does not present such an emergency? Therefore it is that a physician's habit of lying to his patients as a means of cure would cause him to lose

the power of aiding by truthful assurances those patients who most needed help of this sort.

It is poor policy, as policy, to venture a lie in behalf of a single patient, at the cost of losing the power to make the truth beneficial to a hundred patients whose lives may be dependent on wise words of encouragement. And the policy is still poorer as policy, when it is in the line of an unmistakable sin. And many a good physician like many a good soldier, repudiates the idea of a "lie of necessity" in his profession.

Since lying is sinful because a lie is always a lie unto God, the fact that a lie is spoken to an insane person or to a would-be criminal does not make it any the less a sin in God's sight. And it is held by some of the most eminent physicians to the insane that lying to the insane is as poor policy as it is bad morals, and that it is never justifiable, and therefore is never a "necessity" in that sphere.[1]

[Footnote 1: See, for example, the views of Dr. Thomas S. Kirkbride, physician-in-chief and superintendent of the Pennsylvania Hospital for the Insane, in the Report of that institution for 1883, at pages 74-76. In speaking of the duty of avoiding deception in dealings with the insane, he said: "I never think it right to speak anything but the truth."]

So also in dealing with the would-be criminal, a lie is not justifiable in order to save one's life, or one's possessions that are dearer than life, nor yet to prevent the commission of a crime or to guard the highest interests of those whom we love. Yet concealment of that which ought to be concealed is as truly a duty when disclosure would lead to crime, or would imperil the interests of ourselves or others, as it is in all the ordinary affairs of life; but lying as a means of concealment is not to be tolerated in such a case any more than in any other case.

If a robber, with a pistol in his hand, were in a man's bedroom at night, it would not be wrong for the defenseless inmate to remain quiet in his bed, in concealment of the fact that he was awake, if thereby he could save his life, at the expense of his property. If a would-be murderer were seeking his victim, and a man who knew this fact were asked to tell of his whereabouts, it would be that man's duty to conceal his knowledge at this point by all legitimate means. He might refuse to speak, even though his own life were risked thereby; for it were better to die than to lie. And so in many another emergency.

A lie being a sin _per se_, no price paid for it, nor any advantage to be gained from it, would make it other than a sin. The temptation to look at it as a "necessity" may, indeed, be increased by increasing the supposed cost of its refusal; but it is a temptation to wrong-doing to the last. It was a heathen maxim, "Do right though the heavens fall," and Christian ethics ought not to have a lower standard than that of the best heathen morality.

Duty toward God cannot be counted out of this question. God himself cannot lie. God cannot justify or approve a lie. Hence it follows that he who deliberately lies in order to secure a gain to himself, or to one whom he loves, must by that very act leave the service of God, and put himself for the time being under the rule of the "father of lies." Thus in an emergency which seems to a man to justify a "lie of

necessity" that man's attitude toward God might be indicated in this address to him: "Lord, I should prefer to continue in your service, and I would do so if you were able and willing to help me. But I find myself in an emergency where a lie is a 'necessity,' and so I must avail myself of the help of 'the father of lies.' If I am carried through this crisis by his help, I shall be glad to resume my position in your service." The man whose whole moral nature recoils from this position, will not be led into it by the best arguments of Christian philosophers in favor of the "lie of necessity."

VI.

CENTURIES OF DISCUSSION.

Because of the obvious gain in lying in times of extremity, and because of the manifest peril or cost of truth-telling in an emergency, attempts have been made, by interested or prejudiced persons, all along the ages, to reconcile the general duty of adhering to an absolute standard of right, with the special inducements, or temptations, to depart from that standard for the time being. It has been claimed by many that the results of a lie would, under certain circumstances, justify the use of a lie,--the good end in this case justifying the bad means in this case. And the endeavor has also been made to show that what is called a lie is not always a lie. Yet there have ever been found stalwart champions of the right, ready to insist that a lie is a sin _per se_, and therefore not to be justified by any advantage or profit in its utterance.

Prominent in the earlier recorded discussions of the centuries concerning the admissibility of the lie, are those of the Jewish Talmudists and of the Christian Fathers. As in the Bible story the standard of right is recognized as unvariable, even though such Bible characters as Abraham and Jacob and David, and Ananias and Sapphira, fail to conform to it in personal practice; so in the records of the Talmud and the Fathers there are not wanting instances of godly men who are ready to speak in favor of a departure from the strictest requirement of the law of truth, even while the great sweep of sentiment is seen to be in favor of the line that separates the lie from the truth eternally.

Hamburger, a recognized Jewish authority in this sphere, represents the teachings of the Talmud as even more comprehensive and explicit than the Bible itself, in favor of the universal duty of truthfulness. He says: "Mosaism, with its fundamental law of holiness, has established the standard of truthfulness with incomparable definiteness and sharpness (see Lev. 19: 2, 12, 13, 34-37). Truthfulness is here presented as derived directly from the principle of holiness, and to be practiced without regard to resulting benefit or injury to foe or to friend, to foreigner or to countryman. In this moral loftiness these Mosaic teachings as to truthfulness pervade the whole Bible. In the Talmud they receive a profounder comprehension and a further development. Truthfulness toward men is represented as a duty toward God; and, on the other hand, any departure from it is a departure from God."[1]

[Footnote 1: Hamburger's _Real-Encyclopadie für Bibel und Talmud_, I., art. "Truthfulness" (_Wahrhaftigkeit_).]

As specimen illustrations of the teachings of the Talmud on this theme, Hamburger quotes these utterances from its pages: "He who alters his word, at the same time commits idolatry." "Three are hated of God: he who speaks with his mouth otherwise than as he feels with his heart; he who knows of evidence against any one, and does not disclose it," etc. "Four cannot appear before God: the scorner, the hypocrite, the liar, and the slanderer." "'A just measure thou shalt keep;' that is, we should not think one thing in our heart, and speak another with our mouth." "Seven commit the offense of theft: he who steals [sneaks into] the good will of another; he who invites his friend to visit him, and does not mean it in his heart; he who offers his neighbor presents, knowing beforehand that he will not receive them," etc.

And Hamburger adds: "Every lie, therefore, however excellent the motive, is decidedly forbidden.... In the tract Jebamoth, 63, Raba blames his son for employing a 'lie of necessity' _(nothlüge)_ to restore peace between his father and his mother.... It is clear that the Talmud decidedly rejects the principle that 'the end justifies the means.'"[1]

[Footnote 1: Compare also art. "Falseness" _(Falscheit)_.]

On the other hand, Hamburger cites Rabbi Ishmael, one of the Talmudists, as teaching that a Jew might transgress even the prohibition of idolatry (and lying is, according to Talmudic teaching, equivalent to idolatry) in order to save his life, provided the act was not done in public. In support of his position, Rabbi Ishmael cited the declaration concerning the statutes of Moses in Leviticus 18: 5, "which if a man do he shall live in them," and added by way of explanation: "He [the Israelite] is to live through the law, but is not to die through it."[1]

[Footnote 1: See Hamburger's _Real-Encyc_., II., art. "Ismael R."]

And Isaac Abohab, an eminent Spanish rabbi, in his _Menorath Hammaor_[1] gives other illustrations from the Talmud of the advocacy of special exceptions to the strict law of truthfulness, with a good purpose in view, notwithstanding the sweeping claim to the contrary by Hamburger. He says: "Only when it is the intention to bring about peace between men, may anything be altered in discourse; as is taught in the tract Jebamoth. Rabbi Ilai says, in the name of Rabbi Jehuda, son of Rabbi Simeon: 'One may alter something in discourse for the sake of establishing harmony.'... Rabbi Nathan says: 'This indeed is a duty.'... Rabbi Ishmael taught: 'Peace is of such importance that for its sake God even alters facts.'" In each of these cases the rabbi cited misapplies a Bible passage in support of his position.

[Footnote 1: See German translation by R.J. Fürstenthal, Discourse II., I.]

Isaac Abohab adds: "In like manner the rabbis say that one may praise a bride in the presence of her bridegroom, and say that she is handsome and devout, when she is neither, if the intention predominates to make her attractive in the eyes of her bridegroom. Nevertheless a man is not to tell lies even in trifling matters, lest lying should come to be a habit with him, as is warned against in the tract Jebamoth."

Thus it would appear that there were discussions on this subject among the rabbis of the Talmud, and that while there were those who advocated the "lie of necessity,"

as a matter of personal gain or as a means of good to others, there were those who stood firmly against any form of the lie, or any falsity, as in itself at variance with the very nature of God, and with the plain duty of God's children.

Among the Christian Fathers it was much the same as among the Jewish rabbis, in discussions over this question. The one unvarying standard was recognized, by the clearest thinkers, as binding on all for always; yet there were individuals inclined to find a reason for exceptions in the practical application of this standard. The phase of the question that immediately presented itself to the early Christians was, whether it were allowable for a man to deny to a pagan enemy that he was a Christian, or that one whom he held dear was a Christian, when the speaking of the truth would cost him his life, or cost the life of one whom he loved.

There were those who held that the duty to speak the truth was merely a social obligation, and that when a man showed himself as an enemy of God and of his fellows, he shut himself out from the pale of this social obligation; moreover, that when such a man could be deterred from crime, and at the same time a Christian's life could be preserved, by the telling of an untruth, a falsehood would be justifiable. If the lie were told in private under such circumstances, it was by such persons considered different from a public denial of one's faith. But, on the other hand, the great body of Christians, in the apostolic age, and in the age early following, acted on the conviction that a lie is a sin _per se_, and that no emergency could make a lie a necessity. And it was in fidelity to this conviction that the roll of Christian martyrs was so gloriously extended.

Justin Martyr, whose Apologies in behalf of the Christians are the earliest extant, speaks for the best of the class he represents when he says: "It is in our power, when we are examined, to deny that we are Christians; but we would not live by telling a lie."[1] And again: "When we are examined, we make no denial, because we are not conscious of any evil, but count it impious not to speak the truth in all things, which also we know is pleasing to God."[2] There was no thought in such a mind as Justin Martyr's, or in the minds of his fellow-martyrs, that any life was worth saving at the cost of a lie in God's sight.

[Footnote 1: First Apology, Chapter 8.]

[Footnote 2: Second Apology, Chapter 4.]

There were many temptations, and great ones, to the early Christians, to evade the consequences of being known as refusers to worship the gods of the Romans; and it is not to be wondered at that many poor mortals yielded to those temptations. Exemption from punishment could be purchased by saying that one had offered sacrifices to the gods, or by accepting a certificate that such sacrifice had been made, even when such was not the fact; or, again, by professing a readiness to sacrifice, without the intention of such compliance, or by permitting a friend to testify falsely as to the facts; and there were those who thought a lie of this sort justifiable, for the saving of their lives, when they would not have openly renounced their Christian faith.[1] There was much discussion over these practices in the writings of the Fathers; but while there was recognized a difference between open apostasy and the

tolerance of a falsehood in one's behalf, it was held by the church authorities that a lie was always sinful, even though there were degrees in modes of sinning.

[Footnote 1: See Smith and Cheetham's _Dictionary of Christian Antiquities_, art. "Libelli." See also Bingham's _Antiquities of the Christian Church_, Book XVI., Chap. 13, Section 5; also Book XVI., Chap. 3, Section 14; with citations from Tertullian, Origen, and Cyprian.]

Ringing words against all forms of lying were spoken by some of the Christian Fathers. Says the Shepherd of Hermas: "Love the truth, and let nothing but truth proceed from your mouth, that the spirit which God has placed in your flesh may be found truthful before all men; and the Lord, who dwelleth in you, will be glorified, because the Lord is truthful in every word, and in him is no falsehood. They, therefore, who lie, deny the Lord, and rob him, not giving back to him the deposit which they have received. For they received from him a spirit free from falsehood. If they give him back this spirit untruthful, they pollute the commandment of the Lord, and become robbers."[1]

[Footnote 1: Book II., Commandment Third. _The Ante-Nicene Fathers_ (Am. ed.), II., 21.]

Tertullian names among "sins of daily committal, to which we all are liable," the "sin" of "lying, from bashfulness [or modesty], or 'necessity.'"[1] Origen also speaks of the frequency of "lying, or of idle talking;"[2] as if possibly its frequency were in some sense an excuse for it. And Origen specifically claimed that the apostles Peter and Paul agreed together to deceive their hearers at Antioch by simulating a dissension between themselves, when in reality they were agreed.[3] Origen also seemed to approve of false speaking to those who were not entitled to know all the truth; as when he says of the cautious use of falsehood, "a man on whom necessity imposes the responsibility of lying is bound to use very great care, and to use falsehood as he would a stimulant or a medicine, and strictly to preserve its measure, and not go beyond the bounds observed by Judith in her dealings with Holofernes, whom she overcame by the wisdom with which she dissembled her words."[4]

[Footnote 1: "On Modesty," Chap. 19. _The Ante-Nicene Fathers_, XIV., 97.]

[Footnote 2: Origen's Commentaries on Matthew, Tract VI., p. 60; cited in Bingham's _Antiq. of Chr. Ch_., Book XVI., Chap. 3.]

[Footnote 3: Gal. 2: 11-14. A concise statement of the influence of this teaching of Origen on the patristic interpretations of the passage in Galatians, is given by Lightfoot in his commentary on Galatians, sixth edition, pp. 128-132.]

[Footnote 4: Quoted from the sixth book of Origen's Miscellanies by Jerome, in his Apology against Rufinus, Book I., § 18. See _The Nicene and Post-Nicene Fathers_, second series (Am. ed.), III., 492. See, also, Neander's _Geschichte der Christlichen Ethik_, pp. 160, 167.]

There were Christian Fathers who found it convenient to lie, in their own behalf or in behalf of others; and it was quite natural for such mortals to seek to find an excuse for lies that "seemed so necessary" for their purposes. When Gregory of Nyssa, in his

laudable effort to bring about a reconciliation between his elder brother Basil and their uncle, was "induced to practice a deceit which was as irreconcilable with Christian principles as with common sense,"[1] he was ready to argue in defense of such a course.

[Footnote 1: Moore's _Life of S. Gregory of Nyssa. The Nicene and Post-Nicene Fathers_, second series (Am. ed.), V., 5.]

So again, when his brother Basil was charged with falsehood in a comparatively "trivial" matter, (where, in fact, he had merely been in error unintentionally,) Gregory falls back upon the comforting suggestion, that as to lying, in one way or another everybody is at fault; "accordingly, we accept that general statement which the Holy Spirit uttered by the Prophet, 'Every man is a liar.'"[1] Gregory protests against the "solemn reflections on falsehood" by Eunomius, in this connection, and his seeing equal heinousness in it whether in great or very trivial matters. "Cease," he says, "to bid us think it of no account to measure the guilt of a falsehood by the slightness or importance of the circumstances." Basil, on the contrary, asserts without qualification, as his conviction, that it never is permissible to employ a falsehood even for a good purpose. He appeals to the words of Christ that all lies are of the Devil.[2]

[Footnote 1: _Ibid_., p. 46.]

[Footnote 2: Neander's _Geschichte der Christlichen Ethik_, p. 219.]

Chrysostom, as a young man, evaded ordination for himself and secured it to his dearest friend Basil (who should not be confounded with Basil the Great, the brother of Gregory of Nyssa) by a course of deception, which he afterwards labored to justify by the claim that there were lies of necessity, and that God approved of deception as a means of good to others.[1] In the course of his exculpatory argument, he said to his much aggrieved friend Basil: "Great is the value of deceit, provided it be not introduced with a mischievous intention. In fact, action of this sort ought not to be called deceit, but rather a kind of good management, cleverness, and skill, capable of finding out ways where resources fail, and making up for the defects of the mind.... That man would fairly deserve to be called a deceiver who made an unrighteous use of the practice, not one who did so with a salutary purpose. And often it is necessary to deceive, and to do the greatest benefits by means of this device, whereas he who has gone by a straight course has done great mischief to the person whom he has not deceived."[2]

[Footnote 1: See Smith and Wace's _Dictionary of Christian Biography_, I., 519 f.; art. "Chrysostom, John."]

[Footnote 2: See Chrysostom's "Treatise on the Priesthood," in _The Nicene and Post-Nicene Fathers_, first series (Am. ed.), IX., 34-38.]

In fact, Chrysostom seems, in this argument, to recognize no absolute and unvarying standard of truthfulness as binding on all at all times; but to judge lies and deceptions as wrong only when they are wrongly used, or when they result in evil to others. He appears to act on the anti-Christian theory[1] that "the end justifies the means." Indeed, Dr. Schaff, in reprobating this "pious fraud" of Chrysostom, as

"conduct which every sound Christian conscience must condemn," says of the whole matter: "The Jesuitical maxim, 'the end justifies the means,' is much older than Jesuitism, and runs through the whole apocryphal, pseudo-prophetic, pseudo-apostolic, pseudo-Clementine, and pseudo-Isidorian literature of the early centuries. Several of the best Fathers show a surprising want of a strict sense of veracity. They introduce a sort of cheat even into their strange theory of redemption, by supposing that the Devil caused the crucifixion under the delusion [intentionally produced by God] that Christ was a mere man, and thus lost his claim upon the fallen race." [2]

[Footnote 1: Rom. 3: 7, 8.]

[Footnote 2: See Dr. Schaff's "Prologemena to The Life and Works of St. Chrysostom," in _The Nicene and Post-Nicene Fathers_, first Series (Am. ed.), IX., 8.]

Chrysostom, like Gregory of Nyssa, having done that which was wrong in itself, with a laudable end in view, naturally attempts its defense by the use of arguments based on a confusion in his own mind of things which are unjustifiable, with things which are allowable. He does not seem to distinguish between deliberate deception as a mode of lying, and concealment of that which one has a right to conceal. Like many another defender of the right to lie in behalf of a worthy cause, in all the centuries, Chrysostom essays no definition of the "lie," and indicates no distinction between culpable concealment, and concealment that is right and proper. Yet Chrysostom was a man of loving heart and of unwavering purpose of life. In an age of evil-doing, he stood firm for the right. And in spite of any lack of logical perceptions on his part in a matter like this, it can be said of him with truth that "perhaps few have ever exercised a more powerful influence over the hearts and affections of the most exalted natures."[1]

[Footnote 1: Smith and Wace's _Dictionary of Christian Biography_, I., 532.]

Augustine, on the other hand, looks at this question, in accordance with the qualities of his logical mind, in its relation to an absolute standard; and he is ready to accept the consequences of an adherence to that standard, whether they be in themselves desirable or deplorable. He is not afraid to define a lie, and to stand by his definition in his argument. He sees and notes the difference between justifiable concealment, and concealment that is for the purpose of deception. "It is lawful then," he says on this point, "to conceal at fitting time whatever seems fit to be concealed: but to tell a lie is never lawful, therefore neither to conceal by telling a lie."[1] In his treatise "On Lying" _(De Mendacid_),[2] and in his treatise "Against Lying" _(Contra Mendaciuni)[3]_ as well as in his treatise on "Faith, Hope, and Love" _(Enchiridion)_,[4] and again in his Letters to Jerome,[5] Augustine states the principle involved in this vexed question of the ages, and goes over all the arguments for and against the so-called "lie of necessity." He sees a lie to be a sin _per se_, and therefore never admissible for any purpose whatsoever. He sees truthfulness to be a duty growing out of man's primal relation to God, and therefore binding on man while man is in God's sight. He strikes through the specious arguments based on any temporary advantages to be secured through lying, and rejects utterly the suggestion

that man may do evil that good may come.

[Footnote 1: _The Nicene and Post-Nicene Fathers_, first series (Am. ed.), IX., 466.]

[Footnote 2: _Ibid_., III., 455-477.]

[Footnote 3: _Ibid_., pp. 479-500.]

[Footnote 4: _Ibid_., pp. 230-276.]

[Footnote 5: _Ibid_., I., "Letters of St. Augustine."]

The sound words of Augustine on this question, as based on his sound arguments, come down to us with strength and freshness through the intervening centuries; and they are worthy of being emphasized as the expressions of unchanging truth concerning the duty of truthfulness and the sin of lying. "There is a great question about lying," he says at the start, "which often arises in the midst of our everyday business, and gives us much trouble, that we may not either rashly call that a lie which is not such, or decide that it is sometimes right to tell a lie; that is, a kind of honest, well-meant, charitable lie." This question he discusses with fulness, and in view of all that can be said on both sides. Even though life or salvation were to pivot on the telling of a lie, he is sure that no good to be gained could compensate for the committal of a sin.

Arguing that a lie is essentially opposed to God's truth--by which alone man can have eternal life--Augustine insists that to attempt to save another's life through lying, is to set off one's eternal life against the mere bodily life of another. "Since then by lying eternal life is lost, never for any man's temporal life must a lie be told. And as to those who take it ill, and are indignant that one should refuse to tell a lie, and thereby slay his own soul in order that another may grow old in the flesh, what if by our committing adultery a person might be delivered from death: are we therefore to steal, to commit whoredom.... To ask whether a man ought to tell a lie for the safety of another, is just the same as asking whether for another's safety a man ought to commit iniquity."

"Good men," he says, "should never tell lies." "To tell a lie is never lawful, therefore neither to conceal [when concealment is desirable] by telling a lie." Referring to the fact that some seek to find a justification in the Bible teachings for lying in a good cause,--"even in the midst of the very words of the divine testimonies seeking place for a lie,"--he insists, after a full examination of this claim, "that those [cited] testimonies of Scripture have none other meaning than that we must never at all tell a lie."

"A lie is not allowable, even to save another from injury." "Every lie must be called a sin." "Nor are we to suppose that there is any lie that is not a sin, because it is sometimes possible, by telling a lie, to do service to another." "It cannot be denied that they have attained a very high standard of goodness who never lie except to save a man from injury; but in the case of men who have reached this standard, it is not the deceit, but their good intention, that is justly praised, and sometimes even rewarded,"--as in the case of Rahab in the Bible story. "There is no lie that is not contrary to truth. For as light and darkness, piety and impiety, justice and injustice,

sin and righteousness, health and sickness, life and death, so are truth and a lie contrary the one to the other. Whence by how much we love the former, by so much ought we to hate the latter."

"It does indeed make very much difference for what cause, with what end, with what intention, a thing be done: but those things which are clearly sins, are upon no plea of a good cause, with no seeming good end, no alleged good intention, to be done. Those works, namely, of men, which are not in themselves sins, are now good, now evil, according as their causes are good or evil.... When, however, the works in themselves are evil,... who is there that will say, that upon good causes, they may be done, so as either to be no sins, or, what is more absurd, to be just sins?" "He who says that some lies are just, must be judged to say no other than that some sins are just, and that therefore some things are just which are unjust: than which what can be more absurd?" "Either then we are to eschew lies by right doing, or to confess them [when guilty of them] by repenting: but not, while they unhappily abound in our living, to make them more by teaching also."

In replying to the argument that it would be better to lie concerning an innocent man whose life was sought by an enemy, or by an unjust accuser, than to betray him to his death, Augustine said courageously: "How much braver,... how much more excellent, to say, 'I will neither betray nor lie.'" "This," he said, "did a former bishop of the Church of Tagaste, Firmus by name, and even more firm in will. For when he was asked by command of the emperor, through officers sent by him, for a man who was taking refuge with him, and whom he kept in hiding with all possible care, he made answer to their questions, that he could neither tell a lie nor betray a man; and when he had suffered so many torments of body (for as yet emperors were not Christians), he stood firm in his purpose. Thereupon, being brought before the emperor, his conduct appeared so admirable that he without any difficulty obtained a pardon for the man whom he was trying to save. What conduct could be more brave and constant?"[1]

[Footnote 1: See _The Nicene and Post-Nicene Fathers_, first series (Am. ed.), III., 408.]

The treatise "Against Lying" was written by Augustine with special reference to the practice and teaching of the sect of Priscillianists. These Christians "affirmed, with some other of the theosophic sects, that falsehood was allowable for a holy end. Absolute veracity was only binding between fellow-members of their sect."[1] Hence it was claimed by some other Christians that it would be fair to shut out Priscillianists from a right to have only truth spoken to them, since they would not admit that it is always binding between man and man. This view of truthfulness as merely a social obligation Augustine utterly repudiated; as, indeed, must be the case with every one who reckons lying a sin in and of itself. Augustine considered, in this treatise, various hypothetical cases, in which the telling of the truth might result in death to a sick man, while the telling of a falsehood might save his life. He said frankly: "And who can bear men casting up to him what a mischief it is to shun a lie that might save life, and to choose truth which might murder a man? I am moved by this objection exceedingly, but it were doubtful whether also wisely." Yet he sees that it were never

safe to choose sin as a means to good, in preference to truth and right with all their consequences.

[Footnote 1: See Smith and Wace's _Dict. of Chris. Biog_., IV., 478, art. "Priscillianus."]

Jerome having, like many others, adopted Origen's explanation of the scene between Peter and Paul at Antioch, Augustine wrote to him in protest against such teaching, with its implied approval of deceit and falsehood.[1] A correspondence on this subject was continued between these two Fathers for years;[2] and finally Jerome was led to adopt Augustine's view of the matter,[3] and also to condemn Origen for his loose views as to the duty of veracity.[4] But however Jerome might vacillate in his theory, as in his practice, concerning the permanent obligations of truthfulness, Augustine stood firm from first to last in the position which is justified by the teachings of the Bible and by the moral sense of the human race as a whole,--that a lie is always a lie and always a sin, and that a lie can never be justified as a means to even the best of ends.

[Footnote 1: See _The Nicene and Post-Nicene Fathers_, first series (Am. ed.), I., Letters XXVIII., XL.]

[Footnote 2: _Ibid_., Letters LXVII., LXVIII., LXXII., LXXIII., LXXIV., LXXV.]

[Footnote 3: _Ibid_., Letter CLXXX.]

[Footnote 4: _The Nicene and Post-Nicene Fathers_, second series (Am. ed.), III., 460 ff.; _Rufinus' Apology_, Book II.; _Jerome's Apology_, Book I., p. 492.]

From the days of Chrysostom and Augustine to the present time, all discussions of this question have been but a repetition of the arguments and objections then brought forward and examined. There can be, in fact, only two positions maintained with any show of logical consistency. Either a lie is in its very nature antagonistic to the being of God, and therefore not to be used or approved by him, whatever immediate advantages might accrue from it, or whatever consequences might pivot on its rejection; or a lie is not in itself a sin, is not essentially at variance with the nature of God, but is good or evil according to the spirit of its use, and the end to be gained by it; and therefore on occasions God could lie, or could approve lying on the part of those who represent him.

The first of these positions is that maintained by the Shepherd of Hermas, by Justin Martyr, by Basil the Great, and by Augustine; the second is practically that occupied by Gregory of Nyssa and Chrysostom, even though they do not explicitly define, or even seem to perceive, it as their position. There are, again, those like Origen and Jerome, who are now on one side of the dividing line, and now on the other; but they are not logically consistent with themselves in their opinions or practices. And those who are not consistent usually refrain from explicit definitions of the lie and of falsehood; they make no attempt at distinguishing between justifiable concealment, and concealment for the very purpose of deception.

With all the arguments on this question, in all the centuries, comprised within these well-defined bounds, it were useless to name each prominent disputant, in

order merely to classify him as on the one side or on the other, or as zigzagging along the line which he fails to perceive. It were sufficient to point out a few pre-eminent mountain peaks, in the centuries between the fifth and the nineteen of the Christian era, as indicative of the perspective history of this discussion.

Towering above the greatest of the Schoolmen in the later middle ages stands Thomas Aquinas. As a man of massive intellect, of keenness of perception, of consistent logical instincts, and of unquestioned sincerity and great personal devoutness, we might expect him to be found, like Augustine, on the side of principle against policy, in unqualified condemnation of lying under any circumstances whatsoever, and in advocacy of truthfulness at all hazards. And that, as a matter of fact, is his position.

In his _Summa Theologies_[1] Aquinas discusses this whole question with eminent fairness, and with great thoroughness. He first states the claims of those who, from the days of Chrysostom, had made excuses for lying with a good end in view, and then he meets those claims severally. He looks upon lies as evil in themselves, and as in no way to be deemed good and lawful, since a right concurrence of all elements is essential to a thing's being good. "Whence, every lie is a sin, as Augustine says in his book 'Against Lying.'" His conclusion, in view of all that is to be said on both sides of the question, is: "Lying is sinful not only as harmful to our neighbor, but because of its own disorderliness. It is no more permitted to do what is disorderly [that is, contrary to the divine order of the universe] in order to prevent harm, than it is to steal for the purpose of giving alms, except indeed in case of necessity when all things are common property [when, for instance, the taking of needful food in time of a great disaster, as on a wrecked ship, is not stealing]. And therefore it is not allowable to utter a lie with this view, that we may deliver one from some peril. It is allowable, however, to conceal the truth prudently, by a sort of dissimulation, as Augustine says." This recognizes the correctness of Augustine's position, that concealment of what one has a right to conceal may be right, provided no lie is involved in the concealment. As to the relative grades of sin in lying, Aquinas counts lying to another's hurt as a mortal sin, and lying to avert harm from another as a venial sin; but he sees that both are sins.

[Footnote 1: _Secunda Secundae_, Quaestio CX., art. III.]

It is natural to find Aquinas, as a representative of the keen-minded Dominicans, standing by truth as an eternal principle, regardless of consequences; as it is also natural to find, on the other side, Duns Scotus, as a representative of the easy-going Franciscans, with his denial of good absolute save as manifested in the arbitrary will of God. Duns Scotus accepted the "theory of a twofold truth," ascribed to Averroes, "that one and the same affirmation might be theologically true and philosophically false, and _vice versa_." In Duns Scotus's view, "God does not choose a thing because it is good, but the thing chosen is good because God chooses it;" "it is good simply and solely because God has willed it precisely so; but he might just as readily have willed the opposite thereof. Hence also God is not [eternally] bound by his commands, and he can in fact annul them."[1] According to this view, God could forbid lying to-day and justify it to-morrow. It is not surprising, therefore, that "falsehood and

misrepresentation" are "under certain circumstances allowable," in the opinion of Duns Scotus.

[Footnote 1: See Kurtz's _Church History_ (Macpherson's Translation), II., 101, 167-169; Ueberweg's _History of Philosophy_, I., 416, 456 f.; Wuttke's _Christian Ethics_ (Am. ed.), I., 218, Sec. 34.]

So, all along the centuries, the religious teacher who holds to the line between truth and falsehood as an eternal line must, if logically consistent, refuse to admit any possible justification of lying. Only he who denies an eternally absolute line between the true and the false could admit with consistency the justification by God of an act that is essentially hostile to the divine nature. Any exception to this rule is likely to be where a sympathetic nature inclines a teacher to seek for an excuse for that which seems desirable even though it be theoretically wrong.

When it comes to the days of the Protestant Reformation, we find John Calvin, like his prototype Augustine, and like Augustine's follower Aquinas, standing firmly against a lie as antagonistic to the very nature of God, and therefore never justifiable. Martin Luther, also, is a fearless lover of the truth; but he is disposed to find excuses for a lie told with a good end in view, although he refrains from asserting that even the best disposed lie lacks the element of sinfulness.[1] On the other hand, Ignatius Loyola, and his associates in the founding of the Society of Jesus as a means of checking the Protestant Reformation, acted on the idea that was involved in the theology of Duns Scotus, that the only standard of truth and right is in the absolute and arbitrary will of God; and that, therefore, if God, speaking through his representative in the newly formed Society, commands the telling of a lie, a lie is justifiable, and its telling is a duty. Moreover, these Jesuit leaders in defining, or in explaining away, the lie, include, under the head of justifiable concealment, equivocations and falsifications that the ordinary mind would see to be forms of the lie.[2]

[Footnote 1: See Martensen's _Christian Ethics_, p. 216. Compare, for example, Luther's comments on Exodus I: 15-21, with Calvin's comments on Genesis 12: 14-20.]

[Footnote 2: See Symonds's _Renaissance in Italy_, I., 263-267; Cartwright's _The Jesuits_; Meyrick's _Moral Theology of the Church of Rome_; Pascal's _Provincial Letters_. See, also, Kurtz's _Church History_, II., 430.]

It is common to point to the arguments of the Jesuits in favor of lies of expediency, in their work for the Church and for souls, as though their position were exceptional, and they stood all by themselves in including falsehood as a means to be employed rightfully for a good end.

But in this they are simply logically consistent followers of those Christian Fathers, and their successors in every branch of the Church, who have held that a lie for righteous purposes was admissible when the results to be secured by it were of vital importance. All the refinements of casuistry have their value to those who admit that a lie may be right under certain conceivable circumstances; but to those who, like Augustine and Aquinas, insist that a lie is a sin _per se_, and therefore never

admissible, casuistry itself has no interest as a means of showing when a sin is not sinful.[1]

[Footnote 1: Hence the casuistry of the Schoolmen and of the Jesuits, and the question of Mental Reservations, and of "Probabilities," are not treated in detail here.]

Some of the zealous defenders of the principles and methods of the Jesuits affirm that, in their advocacy of dissimulation and prevarication in the interests of a good cause, the Jesuits do not intend to justify lying, but are pointing out methods of proper concealment which are not within the realm of the lie. In this (waiving the question whether these defenders are right or not as to the fact) they seem even more desirous of being counted against lying than those teachers, in the Romish Church or among Protestants, who boldly affirm that a lie itself is sometimes justifiable. Thus it is _claimed_ by a Roman Catholic writer, in defense of the Jesuits, that Liguori, their favorite theologian, taught "that to speak falsely is immutably a sin against God. It may be permitted under no circumstances, not even to save life. Pope Innocent III. says, 'Not even to defend our life is it lawful to speak falsely;'" therefore, when Liguori approves any actions that seem opposed to truthfulness, "he allows the instances because they are not falsehood."[1] On the other hand, Jeremy Taylor squarely asserts: "It is lawful to tell a lie to children or to madmen, because they, having no powers of judging, have no right to the truth."[2]

[Footnote 1: See Meyrick's _Moral Theology of the Church of Rome_, Appendix, p. 256 f.]

[Footnote 2: Jeremy Taylor's _Ductor Dubitantium_, in his Works, X., 103.]

But Jeremy Taylor's trouble is in his indefinite definition of "a lie," and in his consequent confusion of mind and of statement with reference to the limitations of the duty of veracity. He writes on this subject at considerable length,[1] and in alternation declares himself plainly first on one side, and then on the other, of the main question, without even an attempt at logical consistency. He starts out with the idea that "we are to endeavor to be like God, who is truth essentially;" that "God speaks truth because it is his nature;" that "the Holy Scriptures of the Old and New Testament do indefinitely and severely forbid lying," and "our blessed Saviour condemns it by declaring every lie to be of the Devil;" and that "beyond these things nothing can [could] be said for the condemnation of lying." All that certainly is explicit and sound,--as sound as Basil the Great, as St. Augustine, or as Thomas Aquinas!

[Footnote 1: Jeremy Taylor's _Ductor Dubitantium_, in his Works, X., 100-132.]

When he attempts the definition of a lie, however, Jeremy Taylor would seem to claim that injustice toward others and an evil motive are of its very essence, and that, if these be lacking, a lie is not a lie. "Lying is to be understood to be something said or written to the hurt of a neighbor, which cannot be understood [by the hearer or reader] otherwise than to differ from the mind of him that speaks." As Melanchthon says, "To lie is to deceive our neighbor to his hurt." "If a lie be unjust, it can never become lawful; but if it can be separate from injustice, then it may be innocent."

Jeremy Taylor naturally falls back on the Bible stories of the Hebrew midwives and Rahab the harlot, and assumes that God commended their lying, as lying, because they had a good end in view; and he asserts that "it is necessary sometimes by a lie to advantage charity by losing of a truth to save a life," and that "to tell a lie for charity, to save a man's life, the life of a friend, of a husband, of a prince, of an useful and a public person, hath not only been done in all times, but commended by great and wise and good men." From this it would appear that lying, which Jeremy Taylor sets out with denouncing as contrary to God's nature, and as declared by our Saviour to be always of the Devil, may, under certain circumstances, be a godly sin. Gregory of Nyssa and young Chrysostom could not have done better than this in showing the sinlessness of a sin in a good cause.

Seeing that concealment of that which is true is often a duty, and seeing also that concealment of that which ought to be disclosed is often practically a lie, Jeremy Taylor apparently; jumps to the conclusion that concealment and equivocation and lying are practically the same thing, and that therefore lying is sometimes a duty, while again it is a sin. He holds that the right to be spoken to in truthfulness, "though it be regularly and commonly belonging to all men, yet it may be taken away by a superior right supervening; or it may be lost, or it may be hindered, or it may cease upon a greater reason." As "that which is but the half of a true proposition either signifies nothing or is directly a lie," it must be admitted that "in the same cases in which it is lawful to tell a lie, in the same cases it is lawful to use a mental reservation;" and "where it is lawful to lie, it is lawful to equivocate, which may be something less than a plain lie." Moreover, "it is lawful upon a just cause of great charity or necessity to use, in our answers and intercourses, words of divers signification, though it does deceive him that asks."

Jeremy Taylor ingenuously confesses that, in certain cases where lying is allowable or is a duty, "the prejudice which the question is like to have is in the meaning and evil sound of the word lying; which, because it is so hateful to God and man, casts a cloud upon anything that it comes near." But, on the whole, Jeremy Taylor is willing to employ with commendation that very word "lying" which is "so hateful to God and man." And in various cases he insists that "it is lawful to tell a lie," although "the lie must be charitable and useful,"--a good lie, and not a wicked lie; for a good lie is good, and a wicked lie is wicked. He does not shrink from the consequences of his false position.

Jeremy Taylor can therefore be cited as arguing that a lie is never admissible, but that it often is commendable. He does not seem to be quite sure of any real difference between lying and justifiable concealment, or to have in his mind an unvarying line between truthfulness and lying. He admits that God and man hate lying, but that a good lie, nevertheless, is a very good thing. And so he leaves the subject in more of a muddle than he found it.

Coming down to the present century, perhaps the most prominent and influential defender of the "lie of necessity," or of limitations to the law of veracity, is Richard Rothe; therefore it is important to give special attention to his opinions and arguments on this subject. Rothe was a man of great ability, of lovely spirit, and of

pervasive personal influence; and as a consequence his opinions carry special weight with his numerous pupils and followers.

Kurtz[1] characterizes Rothe as "one of the most profound thinkers of the century, equaled by none of his contemporaries in the grasp, depth, and originality of his speculation," and his "Theological Ethics" as "a work which in depth, originality, and conclusiveness of reasoning, is almost unapproached." And in the opinion of Lichtenberger,[2] Rothe "is unquestionably the most distinguished theologian of the School of Conciliation, and the most original thinker since Schleiermacher," while "he also showed himself to be one of the humblest Christians and one of the finest formed characters of his age." It is not to be wondered at therefore, that, when such a leader in thought and in influence as Rothe declares himself in favor of a judicious use of falsehood as a means of good, many are inclined to feel that there must be some sound reason for his course. Yet, on the other hand, the arguments in favor of falsehood, put forward by even such a man, ought to be scrutinized with care, in order to ascertain if they are anything more than the familiar arguments on the same side repeated in varying phrase in all the former centuries from Chrysostom to Jeremy Taylor.

[Footnote 1: _Church History_ (Macpherson's translation), III., 201.]

[Footnote 2: _History of German Theology in the 19th Century_, p. 492.]

The trouble with Rothe in his treatment of this Matter[1] is, that he considers the duty of truthfulness merely in its personal and social aspects, without any direct reference to the nature, and the declared will, of God. Moreover, his peculiar definition of a lie is adapted to his view of the necessities of the case. He defines a lie as "the unloving misuse of speech (or of other recognized means of communication) to the intentional deception of our neighbor." In his mind, lovelessness toward one's fellow-man is of the very essence of the lie, and when one speaks falsely in expression of a spirit of love to others, it is not necessarily a lie.

[Footnote 1: Rothe's _Theologische Ethik_, IVter Band, §§ 1064, 1065.]

Rothe does not seem to recognize, in its application to this matter, the great principle that there is no true love for man except in conformity to and in expression of love for God; hence that nothing that is in direct violation of a primal law of God can be an exhibition of real love for one of God's creatures.

It is true that Rothe assumes that the subject of Theological Ethics is an essential branch of Speculative Theology; but in his treatment of Special Duties he seems to assume that Society rather than God is their background, and therefore the idea of sin as sin does not enter into the discussion. His whole argument and his conclusions are an illustration of the folly of attempting to solve any problem in ethics without considering the relation to it of God's eternal laws, and of the eternal principles which are involved in the very conception of God. Ethics necessarily includes more than social duties, and must be considered in the light of duty to God as above all.

"The intentional deception of our neighbor," says Rothe, "by saying what is untrue, is not invariably and unqualifiedly a lie. The question in this case is essentially one of

the purpose.... It is only in the case where the untruth spoken with intent to deceive is at the same time an act of unlovingness toward our neighbor, that it is a violation of truthfulness as already defined, that is, a lie." In Rothe's view, "there are relations of men to each other in which [for the time being] avowedly the ethical fellowship does not exist, although the suspension of this fellowship must, of course, always be regarded as temporary, and this indeed as a matter of duty for at least one of the parties. Here there can be no mention of love, and therefore no more of the want of it." Social duties being in such cases suspended, and the idea of any special duty toward God not being in consideration, it is quite proper, as Rothe sees it, for enemies in war, or in private life, to speak falsely to each other. Such enemies "naturally have in speech simply a weapon which one may use against the other.... The duty of speaking the truth cannot even be thought of as existing between persons so arrayed against each other.... However they may try to deceive each other, even with the help of speech, they do not lie."

But Rothe goes even farther than this in the advocacy of such violations, or abrogations, of the law of veracity, as would undermine the very foundations of social life, and as would render the law against falsehood little more than a variable personal rule for limited and selected applications,--after the fashion of the American humorist who "believed in universal salvation if he could pick his men." Rothe teaches that falsehood is a duty, not only when it is needful in dealing with public or personal enemies, but often, also, in dealing with "children, the sick, the insane, the drunken, the passionately excited, and the morally weak,"--and that takes in a large share of the human race. He gives many illustrations of falsehood supposed to be necessary (where, in fact, they would seem to the keen-minded reader to be quite superfluous[1]) and having affirmed the duty of false speaking in these cases, he takes it for granted (in a strange misconception of the moral sense of mankind) that the deceived parties would, if appealed to in their better senses, justify the falsehoods spoken by mothers in the nursery, by physicians in the sick-room, and by the clear-headed sober man in his intercourse with the angry or foolish or drunken individual.

[Footnote 1: Nitzsch, the most eminent dogmatic theologian among Schleiermacher's immediate disciples, denies the possibility of conceiving of a case where loving consideration for others, or any other dutiful regard for them, will not attain its end otherwise and more truly and nobly than by lying to them, or where "the loving liar or falsifier might not have acted still more lovingly and wisely without any falsification.... The lie told from supposed necessity or to serve another is always, even in the most favorable circumstances, a sign either of a wisdom which is lacking in love and truth, or of a love which is lacking in wisdom."]

"Of course," he says, "such a procedure presupposes a certain relation of guardianship, on the part of the one who speaks untruth, over him whom he deceives, and a relative irresponsibility on the part of the other,--an incapacity to make use of certain truths except to his actual moral injury. And in each case all depends on the accuracy of this assumption." It is appalling to find a man like Rothe announcing a principle like this as operative in social ethics! Every man to decide for himself

(taking the responsibility, of course, for his personal decision) whether he is in any sense such a guardian of his fellow-man as shall make it his duty to speak falsely to him in love!

Rothe frankly admits that there is no evidence that Jesus Christ, while setting an example here among men, ever spoke one of these dutiful untruths; although it certainly would seem that Jesus might have fairly claimed as good a right to a guardianship of his earthly fellows as the average man of nowadays.[1] But this does not restrain Rothe from deliberately advising his fellow-men to a different course.

[Footnote 1: Rothe says on this point: "That the Saviour spoke untruth is a charge to whose support only a single passage, John 7:8, can be alleged with any show of plausibility. But even here there was no speaking of untruth, even if [Greek: ank][a disputed reading] be regarded as the right reading." See on this passage Meyer in his _Commentary_, and Westcott in _The Bible Commentary_.]

Rothe names Marheineke, DeWette, von Ammon, Herbart, Hartenstein, Schwartz, Harless, and Reinhard, as agreeing in the main with his position; while as opposed to it he mentions Kant, Fichte, Krause, Schleiermacher, von Hirscher, Nitzsch, Flatt, and Baumgarten-Crusius. But this is by no means a question to be settled by votes; and not one of the writers cited by Rothe as of his mind, in this controversy, has anything new to offer in defense of a position in such radical disagreement with the teachings of the Bible, and with the moral sense of the race, on this point, as that taken by Rothe. In his ignoring of the nature and the will of God as the basis of an argument in this matter, and in his arbitrary and unauthorized definition of a lie (with its inclusion of the claim that the deliberate utterance of a statement known to be false, for the express purpose of deceiving the one to whom it is spoken, is not necessarily and inevitably a lie), Rothe stands quite pre-eminent. Wuttke says, indeed, of Rothe's treatment of ethics: "Morality [as he sees it] is an independent something alongside of piety, and rests by no means on piety,--is entirely co-ordinate to and independent of it."[1] Yet so great is the general influence of Rothe, that various echoes of his arguments for falsehoods in love are to be found in subsequent English and American utterances on Christian ethics.

[Footnote 1: Wuttke's _Christian Ethics_ (Lacroix's transl.), § 48.]

Contemporaneous with Richard Rothe, and fully his peer in intellectual force and Christ-likeness of spirit, stands Isaac August Dorner. Dr. Schaff says of him:[1] "Dr. Dorner was one of the profoundest and most learned theologians of the nineteenth century, and ranks with Schleiermacher, Neander, Nitzsch, Julius Müller, and Richard Rothe. He mastered the theology of Schleiermacher and the philosophy of Hegel, appropriated the best elements of both, infused into them a positive evangelical faith and a historic spirit;" and as a lecturer, especially "on dogmatics and ethics ... he excelled all his contemporaries." And to this estimate of him Professor Mead adds:[2] "Even one who knows Dorner merely as the theological writer, will in his writings easily detect the fine Christian tone which characterized the man; but no one who did not personally know him can get a true impression of the Johannean tenderness and childlike simplicity which distinguished him above almost any one of

equal eminence whom the world has ever known."

[Footnote 1: _Supplement to Schaff-Hertzog Encyc. of Relig. Knowl_., p. 58.]

[Footnote 2: Preface to Dorner's _System of Christian Ethics_ (Am. ed.), p. vii.]

When, therefore, it is considered that, after Rothe had given his views on veracity to the world, Dorner wrote on the same subject, as the very last work of his maturest life, a special interest attaches to his views on this mooted question. And Dorner is diametrically opposed to Rothe in this thing. Dorner bases the duty of truthfulness on our common membership in Christ, and the love that grows out of such a relation.[1] "Truth does not," indeed, "demand that all that is in a man should be brought out, else it would be a moral duty for him to let also the evil that is in him come forth, whereas it is his duty to keep it down." But if an untrue statement be made with the intention to deceive, it is a lie.

[Footnote 1: See Dorner's _System of Christian Ethics_ (Am. ed.), pp. 487-492.]

"Are there cases," he asks, "where lying is allowable? Can we make out the so-called 'white lie' to be morally permissible?" Then he takes up the cases of children and the insane, who are not entitled to know all the truth, and asks if it be right not only to conceal the truth but to falsify it, in talking with them. Concealment may be a duty, he admits, but he denies that falsifying is ever a duty. "How shall ethics ever be brought to lay down a duty of lying [of 'white lying'], to recommend evil that good may come? The test for us is, whether we could ever imagine Christ acting in this way, either for the sake of others, or--which would be quite as justifiable, since self-love is a moral duty--for his _own_ sake."

As to falsifying to a sick or dying man, he says, "we overestimate the value of human life, and, besides, we in a measure usurp the place of Providence, when we believe we may save it by committing sin." In other words, Dorner counts falsifying with the intention of deceiving, even with the best of motives, a lie, and therefore a sin--never justifiable. Like Augustine, Dorner recognizes degrees of guilt in lies, according to the spirit and motive of their telling; but in any event, if there be falsehood with the purpose of deceiving, it is a sin--to be regretted and repented of.

Dorner makes a fresh distinction between the stratagems of war and lying, which is worthy of note. He says that playful fictions, after the manner of riddles to be guessed out, are clearly allowable. So "in war, too, something like a game of this kind is carried on, when by way of stratagem some deceptive appearance is produced, and a riddle is thus given to the enemy. In such cases there is no falsehood; for from the conditions of the situation,--whether friendly or hostile,--the appearance that is given is confessedly nothing more than an appearance, and is therefore honest."

The simplicity and clearness of Dorner, in his unsophistical treatment of this question, is in refreshing contrast with the course of Rothe,--who confuses the whole matter in discussion by his arbitrary claim that a lie is not a lie, if it be told with a good purpose and a loving spirit. And the two men are representative disputants in this controversy of the centuries, as truly as were Augustine and Chrysostom.

A close friend of Dorner was Hans Lassen Martensen, "the greatest theologian of Denmark," and a thinker of the first class, "with high speculative endowments, and a considerable tincture of theosophical mysticism."[1] Martensen's "Christian Ethics" do not ignore God and the Bible as factors in any question of practical morals under discussion. He characterizes the result of such an omission as "a reckoning of an account whose balance has been struck elsewhere; if we bring out another figure, we have reckoned wrong." Martensen's treatment of the duty of veracity is a remarkable exhibit of the workings of a logical mind in full view of eternal principles, yet measurably hindered and retarded by the heart-drawings of an amiable sentiment. He sees the all-dividing line, and recognizes the primal duty of conforming to it; yet he feels that it is a pity that such conformity must be so expensive in certain imaginary cases, and he longs to find some allowance for desirable exceptions.[2]

[Footnote 1: See Kurtz's _Church History_ (Macpherson's transl.), III., 201; _Supplement to Schaff-Hertzog Encyc. of Relig. Knowl_., p. 57; _Johnson's Univ. Cycl._., art. "Martensen."]

[Footnote 2: Martensen's _Christian Ethics (Individual)_, (Eng. trans.,) pp. 205-226.]

Martensen gives as large prominence as Rothe to love for one's fellow-man; but he bases that love entirely, as Rothe does not, on love for Christ. "Only in Christ, and [in] the light which, proceeding from him, is poured over human nature and all human life, can we love men in the central sense, and only then does philanthropy receive its deepest religious and moral character, when it is rooted in the truth of Christ." And as Christ is Truth, those who are Christ's must never violate the truth. "'Thou shalt not bear false witness; thou shalt not lie, neither in word nor deed; thou shalt neither deny the truth, nor give out anything that is not truth for truth,'--this commandment must dominate and penetrate all our life's relations." "Truth does not exist for man's sake, but man for the sake of the truth, because the truth would reveal itself to man, would be owned and testified by him." This would seem to be explicit enough to shut out the possibility of a justifiable lie!

"Yet it does not follow from this," says Martensen, "that our duty to communicate the truth to others is unlimited.... 'There is a time to be silent, and a time to speak.' No one is bound to say everything to everybody." Here he distinguishes between justifiable concealment and falsehood. Then he comes to the question "whether the so-called 'lie of exigency' can ever be justifiable." He runs over the arguments on both sides, and recalls the centuries of discussion on the subject. He thinks that adherence to the general principle which forbids lying would, in certain cases where love prompted to falsehood, cause in most minds an inward feeling that the letter killeth, and that to follow the promptings of love were better. Hence he argues that "as in other departments there are actions which, although from the standpoint of the ideal they are to be rejected, yet, from the hardness of men's hearts, must be approved and admitted, and under this restriction become relatively justifiable and dutiful actions, simply because greater evils are thereby averted; so there is also an untruth from exigency that must still be allowed for the sake of human weakness." And in his opinion "it comes to this, that the question of casuistry cannot be solved by general

and abstract directions, but must be solved in an individual, personal way, especially according to the stage of moral and religious development and ripeness on which the person in question is found."

Having made these concessions, in the realm of feeling, to the defenders of the "lie of exigency," which may be "either uttered from love to men, or as defense against men--a defense in which either a justifiable self-love or sympathy with others is operative," Martensen proceeds to show that every such falsehood is abnormal and immoral. "When we thus maintain," he says, "that in certain difficult cases an 'untruth from necessity' may occur, which is to be allowed for the sake of human weakness, and under the given relations may be said to be justified and dutiful, we cannot but allow, on the other hand, that in every such untruth there is something of sin, nay something that needs excuse and forgiveness.... Certainly even the truth of the letter, the external, actual truth, even the formally correct, finds its right, the ground of its validity, in God's holy order of the world. But by every lie of exigency the command is broken, 'Thou shalt not bear false witness.'"

Martensen protests against the claim of Rothe that a falsehood spoken in love "is not at all to be called a lie, but can be absolutely defended as morally _normal_, and so in no respect needs pardon." "However sharply we may distinguish between lie and untruth (_mendacium_ and _falsilo-quium_), the untruth in question can never be resolved into the morally normal." And he suggests that if one had more of wisdom and courage and faith, he might be true to the truth in an emergency without fear of the consequences.

"Let us suppose, for instance," he says, "the ... case, where the husband deceives his sick spouse from fear that she could not survive the news of the death of her child; who dare maintain that if the man had been able in the right way, that is in the power of the gospel, with the wisdom and the comfort of faith, to announce the death of the child, a religious crisis might not have arisen in her soul, which might have a healing and quickening effect upon her bodily state? And supposing that it had even led to her death, who dare maintain that that death, if it was a Christian death, were an evil, whether for the mother herself, or for the survivors?

"Or, let us take the woman who, to save her chastity, applies the defense of an untruth: who dare maintain that if she said the truth to her persecutors, but uttered it in womanly heroism, with a believing look to God, with the courage, the elevation of soul springing from a pure conscience, exhibiting to her persecutors the badness and unworthiness of their object, she might not have disarmed them by that might that lies in the good, the just cause, the cause whose defense and shield God himself will be? And even if she had to suffer what is unworthy, who dare maintain that she could not in suffering preserve her moral worth?"

Martensen recalls the story of Jeanie Deans, in Scott's "Heart of Midlothian," who refuses to tell a lie of exigency in order to save her sister's life; yet who, having uttered the truth which led to her sister's sentence of death, set herself, in faith in God, to secure that sister's pardon, and by God's grace compassed it. "Most people would at least be disposed to excuse Jeanie Deans, and to forgive her, if she had here

made a false oath, and thereby had afforded her protection to the higher truth." And if a loving lie of exigency be a duty before God, an appeal to his knowledge of the fact is, of course, equally a duty. To refuse to appeal to God in witness of the truth of a falsehood that is told from a loving sense of duty, is to show a lack of confidence in God's approval of such an untruth. "But she will, can, and dare, for her conscience' sake, not do this."

"But the best thing in this tale," adds Martensen, "is that it is no mere fiction. The kernel of this celebrated romance is actual history." And Sir Walter Scott caused a monument to be erected in his garden, with the following inscription, in memory of this faithful truth-lover:

"This stone was placed by the Author of 'Waverley' in memory of Helen Walker, who fell asleep in the year of our Lord 1791. This maiden practiced in humility all the virtues with which fancy had adorned the character that bears in fiction the name of Jeanie Deans. She would not depart a foot's breadth from the path of truth, not even to save her sister's life; and yet she obtained the liberation of her sister from the severity of the law by personal sacrifices whose greatness was not less than the purity of her aims. Honor to the grave where poverty rests in beautiful union with truthfulness and sisterly love."

"Who will not readily obey this request," adds Martensen, "and hold such a memory in honor?... Who does not feel himself penetrated with involuntary, most hearty admiration?"

In conclusion, in view of all that can be said on either side of the question, Martensen is sure that "the lie of exigency itself, which we call inevitable, leaves in us the feeling of something unworthy, and this unworthiness should, simply in following Christ, more and more disappear from our life. That is, the inevitableness of the lie of exigency will disappear in the same measure that an individual develops into a true personality, a true character.... A lie of exigency cannot occur with a personality that is found in possession of full courage, of perfect love and holiness, as of the enlightened, all-penetrating glance. Not even as against madmen and maniacs will a lie of exigency be required, for to the word of the truly sanctified personality there belongs an imposing commanding power that casts out demons. It is this that we see in Christ, in whose mouth no guile was found, in whom we find nothing that even remotely belongs to the category of the exigent lie."

So it is evident that if one would seek excuse for the lie of exigency, in the concessions made by Martensen, he must do so only on the score of the hardness of his heart, and the softness of his head, as one lacking a proper measure of wisdom, of courage, and of faith, to enable him to conform to the proper ideal standard of human conduct. And even then he must recognize the fact that in his weakness he has done something to be ashamed of, and to demand repentance. Cold comfort that for a decent man!

It would seem that personal temperament and individual peculiarities had their part in deciding a man's attitude toward the question of the unvarying duty of veracity, quite as surely as the man's recognition of great principles. An illustration of

this truth is shown in the treatment of the subject by Dr. Charles Hodge on the one hand, and by Dr. James H. Thornwell on the other, as representatives, severally, of Calvinistic Augustinianism in the Presbyterian Church of the United States, in its Northern and Southern branches. Starting from the same point of view, and agreeing as to the principles involved, these two thinkers are by no means together in their conclusions; and this, not because of any real difference in their processes of reasoning, but apparently because of the larger place given by the former to the influence of personal feeling, as over against the imperative demands of truth.

Dr. Hodge begins with the recognition and asseveration of eternal principles, that can know no change or variation in their application to this question; and then, as he proceeds with its discussion, he is amiably illogical and good-naturedly inconsistent, and he ends in a maze, without seeming quite sure as to his own view of the case, or giving his readers cause to know what should be their view. Dr. Thornwell, on the other hand, beginning in the same way, proceeds unwaveringly to the close, in logical consistency of reasoning; leaving his readers at the last as fully assured as he is as to the application of unchangeable principles to man's life and duties.

No one could state the underlying principles involved in this question more clearly and explicitly than does Dr. Hodge at the outset;[1] and it would seem from this statement that he could not be in doubt as to the issue of the discussion of this question of the ages. "The command to keep truth inviolate belongs to a different class [of commands] from those relating to the sabbath, to marriage, or to property. These are founded on the permanent relations of men in the present state of existence. They are not in their own nature immutable. But truth is at all times sacred, because it is one of the essential attributes of God, so that whatever militates against or is hostile to truth is in opposition to the very nature of God."

[Footnote 1: See Hodge's _Systematic Theology_, III., 437-463.]

"Truth is, so to speak, the very substratum of Deity. It is in such a sense the foundation of all the moral perfections of God, that without it they cannot be conceived of as existing. Unless God really is what he declares himself to be; unless he means what he declares himself to mean; unless he will do what he promises,--the whole idea of God is lost. As there is no God but the true God, so without truth there is and can be no God. As this attribute is the foundation, so to speak, of the divine, so it is the foundation of the physical and moral order of the universe.... There is, therefore, something awfully sacred in the obligations of truth. A man who violates the truth, sins against the very foundation of his moral being. As a false god is no god, so a false man is no man; he can never be what man was designed to be; he can never answer the end of his being. There can be in him nothing that is stable, trustworthy, or good."

Here is a platform that would seem to be the right standing-place for all and for always. Dr. Hodge apparently recognizes its well-defined limits and bounds; yet when he comes to discuss the question whether a certain person is, in a supposable case, on it, or off it, he does not seem so sure as to its precise boundary lines. He begins to waver when he cites Bible incidents. Recognizing the fact that fables and parables,

and works of fiction, even though untrue, are not falsehoods, he strangely jumps to the conclusion that the "intention to deceive" is "not always culpable." He immediately follows this non-sequitur with a reference to the lying Hebrew midwives,[1] and he quotes the declaration of God's blessing on them, as if it were an approval of their lying, or their false speaking with an intention to deceive, instead of an approval of their spirit of devotion to God's people.[2]

[Footnote 1: Exod. I: 19, 20.]

[Footnote 2: Comp. p. 35 f., _supra_.]

From the midwives he passes to Samuel, sent of God to Bethlehem; [1] and under cover of the expressed opinions of others, Dr. Hodge says vaguely: "Here, it is said, is a case of intentional deception commanded. Saul was to be deceived as to the object of Samuel's journey to Bethlehem." Yet, whoever "said" this was guilty of a gratuitous charge of intentional deception, against the Almighty. Samuel was directed of God to speak the truth, so far as he spoke at all, while he concealed from others that which others had no right to know.[2] It would appear, however, throughout this discussion, that Dr. Hodge does not perceive the clear and important distinction between justifiable concealment from those who have no right to a knowledge of the facts, and concealment, or even false speaking, with the deliberate intention of deceiving those interested. In fact, Dr. Hodge does not even mention "concealment," as apart from its use for the specific purpose of deception.

[Footnote 1: I Sam. 16: i, 2.]

[Footnote 2: Comp. pp. 38-40, _supra_.]

Again Dr. Hodge cites the incident of Elisha at Dothan[1] as if in illustration of the rightfulness of deception under certain circumstances. But in this case it was concealment of facts that might properly be concealed, and not the deception of enemies as enemies, that Elisha compassed. The Syrians wanted to find Elisha. Their eyes were blinded, so that they did not recognize him when in his presence. In order to teach them a lesson, Elisha told the Syrians that they could not find him, or the city which was his home, by their own seeking; but if they would follow him he would bring them to the man whom they sought. They followed him, and he showed himself to them. When their eyes were opened in Samaria he would not suffer them to be harmed, but had them treated as guests, and sent back safely to their king.

[Footnote 1: Kings 6: 14-20.]

Having cited these three cases, no one of which can fairly be made to apply to the argument he is pursuing, Dr. Hodge complacently remarks: "Examples of this kind of deception are numerous in the Old Testament. Some of them are simply recorded facts, without anything to indicate how they were regarded in the sight of God; but others, as in the cases above cited, received either directly or by implication the divine sanction."

But Dr. Hodge goes even farther than this. He ventures to suggest that Jesus Christ deceived his disciples by intimating what was not true as to his purpose, in more than one instance. "Of our blessed Lord himself it is said in Luke 24:28, 'He

made as though [Greek: prosepoieito]--he made a show of: he would have gone further.' He so acted as to make the impression on the two disciples that it was his purpose to continue his journey. (Comp. Mark 6: 48.)"[1] This suggestion of Dr. Hodge's would have been rebuked by even Richard Rothe, and would have shocked August Dorner. Would Dr. Hodge deny that Jesus _could_ have had it in his mind to "go further," or to have "passed by" his disciples, if they would not ask him to stop? And if this were a possibility, is it fair to intimate that a purpose of deception was in his mind, when there is nothing in the text that makes that a necessary conclusion? Dr. Hodge, indeed, adds the suggestion that "many theologians do not admit that the fact recorded in Luke 24:28 [which he cites as an illustration of justifiable deception by our Lord] involved any intentional deception;" but this fact does not deter him from putting it forward in this light.

[Footnote 1: When Jesus came walking on the sea, toward his disciples in their tempest-tossed boat, "he would have passed them by;" but their cry of fear drew him toward them.]

In the discussion of the application to emergencies, in practical life, of the eternal principle which he points out at the beginning, Dr. Hodge is as far from consistency as in his treatment of Bible narratives. "It is generally admitted," he says, "that in criminal falsehoods there must be not only the enunciation or signification of what is false, and an intention to deceive, but also a violation of some obligation." What obligation can be stronger than the obligation to be true to God and true to one's self? If, as Dr. Hodge declares, "a man who violates the truth, sins against the very foundation of his moral being," a man would seem to be always under an obligation not to violate the truth by speaking that which is false with an intention to deceive. But Dr. Hodge seems to lose sight of his premises, in all his progress toward his conclusions on this subject.

"There will always be cases," he continues, "in which the rule of duty is a matter of doubt. It is often said that the rule above stated applies when a robber demands your purse. It is said to be right to deny that you have anything of value about you. You are not bound to aid him in committing a crime; and he has no right to assume that you will facilitate the accomplishment of his object. This is not so clear. The obligation to speak the truth is a very solemn one; and when the choice is left a man to tell a lie or lose his money, he had better let his money go. On the other hand, if a mother sees a murderer in pursuit of her child, she has a perfect right to mislead him by any means in her power [including lying?]; because the general obligation to speak the truth is merged or lost, for the time being, in the higher obligation." Yet Dr. Hodge starts out with the declaration that the obligation "to keep truth inviolate," is highest of all; that "truth is at all times sacred, because it is one of the essential attributes of God;" that God himself cannot "suspend or modify" this obligation; and that man is always under its force. And now, strangely enough, he claims that in various emergencies "the general obligation to speak the truth is merged, or lost, for the time being, in the higher obligation." The completest and most crushing answer to the vicious conclusions of Dr. Hodge as to the varying claims of veracity, is to be found in the explicit terms of his unvaryingly correct premises in the discussion.

Dr. Hodge appears to be conscious of his confusion of mind in this discussion, but not to be quite sure of the cause of it. As to his claim that the general obligation to speak the truth may be merged for the time being in a "higher obligation," he says: "This principle is not invalidated by its possible or actual abuse. It has been greatly abused." And he adds, farther on, in the course of the discussion:

"The question now under consideration is not whether it is ever right to do wrong, which is a solecism; nor is the question whether it is ever right to lie; but rather what constitutes a lie."

Having claimed that a lie necessarily includes falsity of statement, an intention to deceive, and "a violation of some obligation," Dr. Hodge goes on to show that "every lie is a violation of a promise," as growing out of the nature of human society, where "every man is expected to speak the truth, and is under a tacit but binding promise not to deceive his neighbor by word or act." And, after all this, he is inclined to admit that there are cases in which falsehoods with the intention of deceiving are not lying, and are justifiable. "This, however," he goes on to say, "is not always admitted. Augustine, for example, makes every intentional deception, no matter what the object or what the circumstances, to be sinful." And then, in artless simplicity, Dr. Hodge concludes: "This would be the simplest ground for the moralist to take. But as shown above, and as generally admitted, there are cases of intentional deception which are not criminal."

According to the principles laid down at the start by Dr. Hodge, there is no place for a lie in God's service; but according to the inferences of Dr. Hodge, in the discussion of this question, there are places where falsehoods spoken with intent to deceive are admissible in God's sight and service. His whole treatment of this subject reminds me of an incident in my army-prison life, where this question as a question was first forced upon my attention. The Union prisoners, in Columbia at that time, received their rations from the Confederate authorities, and had them cooked in their own way, and at their own expense, by an old colored woman whom they employed for the purpose. Two of us had a dislike for onions in our stew, while the others were well pleased with them. So we two agreed with old "Maggie," for a small consideration, to prepare us a separate mess without onions. The next day our mess came by itself. We took it, and began our meal with peculiar satisfaction; but the first taste showed us an unmistakable onion flavor in our stew. When old Maggie came again, we remonstrated with her on her breach of engagement. "Bless your hearts, honeys," she replied, "you must have _some_ onions in your stew!" She could not comprehend the possibility of a beef stew without onions, even though she had formally agreed to make it.

Dr. Hodge's premises in the discussion of the duty of truthfulness rule out onions; but his inferences and conclusions have the odor and the taste of onions. He stands on a safe platform to begin with; but he is an unsafe guide when he walks away from it. His arguments in this case are an illustration of his own declaration: "An adept in logic may be a very poor reasoner."

Dr. Thornwell's "Discourses on Truth"[1] are a thorough treatment of the obligation of veracity and the sin of lying. He is clear in his definitions, marking the distinction between rightful concealment as concealment, and concealment for the purpose of deception. "There are things which men have a right to keep secret," he says, "and if a prurient curiosity prompts others officiously to pry into them, there is nothing criminal or dishonest in refusing to minister to such a spirit. Our silence or evasive answers may have the effect of misleading. That is not our fault, as it was not our design. Our purpose was simply to leave the inquirer as nearly as possible in the state of ignorance in which we found him: it was not to misinform him, but not to inform him at all.

[Footnote 1: In Thornwell's _Collected Writings_, II., 451-613.]

"'Every man,' says Dr. Dick, 'has not a right to hear the truth when he chooses to demand it. We are not bound to answer every question which may be proposed to us. In such cases we may be silent, or we may give as much information as we please, and suppress the rest. If the person afterward discover that the information was partial, he has no title to complain, because he had no right even to what he obtained; and we are not guilty of a falsehood unless we made him believe, by something which we said, that the information was complete.'" "The _intention_ of the speaker, and the _effect_ consequent upon it, are very different things."

Dr. Thornwell recognizes the fact that the moral sense of humanity discerns the invariable superiority of truth over falsehood. "If we place virtue in sentiment," he says, "there is nothing, according to the confession of all mankind, more beautiful and lovely than truth, more ugly and hateful than a lie. If we place it in calculations of expediency, nothing, on the one hand, is more conspicuously useful than truth and the confidence it inspires; nothing, on the other, more disastrous than falsehood, treachery, and distrust. If there be then a moral principle to which, in every form, humanity has given utterance, it is the obligation of veracity." "No man ever tells a lie without a certain degree of violence to his nature."

Dr. Thornwell bases this obligation of veracity on the nature of God, and on the duty of man to conform to the image of God in which he was created. "Jesus Christ commends himself to our confidence and love," he says, "on the ground of his being the truth;... and makes it the glory of the Father that he is the God of truth, and the shame and everlasting infamy of the prince of darkness that he is the father of lies;" and he adds: "The mind cannot move in charity, nor rest in Providence, unless it turn upon the poles of truth." "Every man is as distinctly organized in reference to truth, as in reference to any other purpose."

In Dr. Thornwell's view, it is not, as Dr. Paley would have it, that "a lie is a breach of promise," because as between man and man "the truth is expected," according to a tacit understanding. As Dr. Thornwell sees it, "we are not bound by any other expectations of man but those which we have authorized;" and he deems it "surprising to what an extent this superficial theory of 'contract' has found advocates among divines and moralists," as, for example, Dr. Robert South, whom he quotes.[1] "If Dr. Paley had pushed his inquiries a little farther," adds Thornwell, "he might have

accounted for this expectation [of truthfulness] which certainly exists, independently of a promise, upon principles firmer and surer than any he has admitted in the structure of his philosophy. He might have seen it in the language of our nature proclaiming the will of our nature's God." The moral sense of mankind demands veracity, and abhors falsehood.

[Footnote 1: Smith's _Sermon, on Falsehood and Lying_.]

Dr. Thornwell is clear as to the teachings of the Bible, in its principles, and in the illustration of those principles in the sacred narrative. The Bible as he sees it teaches the unvarying duty of veracity, and the essential sinfulness of falsehood and deception. He repudiates the idea that God, in any instance, approved deception, or that Jesus Christ practiced it. "When our Saviour 'made as though he would have gone farther,' he effectually questioned his disciples as to the condition of their hearts in relation to the duties of hospitality. The angels, in pretending that it was their purpose to abide in the street all night, made the same experiment on Lot. This species of simulation involves no falsehood; its design is not to deceive, but to catechize and instruct. The whole action is to be regarded as a sign by which a question is proposed, or the mind excited to such a degree of curiosity and attention that lessons of truth can be successfully imparted."

And so on through other Bible incidents. Dr. Thornwell has no hesitation in distinguishing when concealment is right concealment, and when concealment is wrong because intended to deceive.

Exposing the incorrectness of the claim, made by Dr. Paley, as by others, that certain specific falsehoods are not lies, Dr. Thornwell shows himself familiar with the discussion of this question of the ages in all the centuries; and he moves on with his eye fixed unerringly on the polar star of truth, in refreshing contrast with the amiable wavering of Dr. Hodge's footsteps.

"Paley's law," he concludes, "would obviously be the destruction of all confidence. How much nobler and safer is the doctrine of the Scriptures, and of the unsophisticated language of man's moral constitution, that truth is obligatory on its own account, and that he who undertakes to signify to another, no matter in what form, and no matter what may be the right in the case to know the truth, is bound to signify according to the convictions of his own mind! He is not always bound to speak, but whenever he does speak he is solemnly bound to speak nothing but the truth. The universal application of this principle would be the diffusion of universal confidence. It would banish deceit and suspicion from the world, and restrict the use of signs to their legitimate offices."

A later work on Christian Ethics, which acquires special prominence through its place in "The International Theological Library," edited by Drs. Briggs and Salmond, is by Dr. Newman Smyth. It shows signs of strength in the premises assumed by the writer, in accordance with the teachings of Scripture and of the best moral sense of mankind; and signs of weakness in his processes of reasoning, and in his final conclusion, according to the mental methods of those who have wavered on this subject, from John Chrysostom to Richard Rothe and Charles Hodge.

Dr. Smyth rightly bases Christian ethics on the nature and will of God, as illustrated in the life and teachings of the divine-human Son of God. "A thoroughly scientific ethics must not only be adequate to the common moral sense of men, but prove true also to the moral consciousness of the Son of man. No ethics has right to claim to be thoroughly scientific, or to offer itself as the only science of ethics possible to us in our present experience, until it has sought to enter into the spirit of Christ, and has brought all its, analysis and theories of man's moral life to the light of the luminous ethical personality of Jesus Christ."[1]

[Footnote 1: Smyth's _Christian Ethics_, p. 6.]

In his general statement of "the duty of speaking the truth," Dr. Smyth is also clear, sound, and emphatic.[1] "The law of truthfulness is," he says, "a supreme inward law of thought." "The obligation of veracity ... is an obligation which every man owes to himself. It is a primal personal obligation. Kant was profoundly right when he regarded falsehood as a forfeiture of personal worth, a destruction of personal integrity.... Truthfulness is the self-consistency of character; falsehood is a breaking up of the moral integrity. Inward truthfulness is essential to moral growth and personal vigor, as it is necessary to the live oak that it should be of one fiber and grain from root to branch. What a flaw is in steel, what a foreign substance is in any texture, that a falsehood is to the character,--a source of weakness, a point where under strain it may break.... Truthfulness, then, is due, first by the individual to himself as the obligation of personal integrity. The unity of the personal life consists in it."

[Footnote 1: _Ibid_., pp. 386-389.]

And in addition to the obligation of veracity as a duty to one's self, Dr. Smyth recognizes it as a duty to others. He says: "Truthfulness is owed to society as essential to its integrity. It is the indispensable bond of social life. Men can be members, one of another in a social organism only as they live together in truth. Society would fall, to pieces without credit; but credit rests on the general social virtue of truthfulness.... The liar is rightly regarded as an enemy to mankind. A lie is not only an affront against the person to whom it is told, but it is an offense against humanity."

If Dr. Smyth had been content to leave this matter with the explicit statement of the principles that are unvaryingly operative, he would have done good service to the world, and his work could have been commended as sound and trustworthy in this department of ethics; but as soon as he begins to question and reason on the subject, he begins to waver and grow confused; and in the end his inconclusive conclusions are pitiably defective and reprehensible.[1]

[Footnote 1: Smyth's _Christian Ethics_, pp. 392-403]

In considering "the so-called lies of necessity," Dr. Smyth declares with frankness: "Some moralists in their supreme regard for truth will not admit that under any conceivable circumstances a lie can be deemed necessary, not even to save life or to prevent a murderer from accomplishing his fiendish purpose." And then over against this he indicates his fatal confusion of mind and weakness of reasoning in the

suggestion: "But the sound human understanding, in spite of the moralists, will prevaricate, and often with great vigor and success, in such cases. Who is right,--Kant, or the common moral sense? Which should be followed,--the philosophic morality, or the practice of otherwise most truthful men?"

It is to be noted that, in these two declarations, Dr. Smyth puts lying as if it were synonymous with prevarication; else there is no reason for his giving the one as over against the other. And this indicates a peculiar difficulty in the whole course of Dr. Smyth's argument concerning the "so-called lie of necessity." He essays no definition of the "lie." He draws no clear line of distinction between a lie, a falsehood, a deceit, and a prevarication, or between a justifiable concealment and an unjustifiable concealment; and in his various illustrations of his position he uses these terms indiscriminately, in such a way as to indicate that he knows no essential difference between them, or that he does not care to emphasize any difference.

If, in the instance given above, Dr. Smyth means that "the sound human understanding, in spite of the moralists," will approve lying, or falsifying with the intention to deceive, he ought to know that the sound human understanding will not justify such a course, and that it is unfair to intimate such a thing.[1] And when he asks, in connection with this suggestion, "Who is right,--Kant, or the common moral sense? Which should be followed, the philosophic morality, or the practice of otherwise most truthful men?" his own preliminary assertions are his conclusive answer. He says specifically, "Kant was profoundly right when he regarded falsehood as a forfeiture of personal worth, a destruction of personal integrity;" and the "common moral sense" of humanity is with Kant in this thing, in accordance with Dr. Smyth's primary view of the case, as over against the intimation of Dr. Smyth's question. As to the suggested "practice of otherwise most truthful men" in this thing,--if men who generally tell the truth, lie, or speak falsely, or deceive, under certain circumstances, they are much like men who are generally decent, but who occasionally, under temptation, are unchaste or dishonest; they are better examples in their uprightness than in their sinning.

[Footnote 1: See pp. 9-32, _supra_.]

It would seem, indeed, that, notwithstanding his sound basis of principles, which recognizes the incompatibility of falsehood with true manhood and with man's duty to his fellows, Dr. Smyth does not carry with him in his argument the idea of the essential sinfulness of a lie, and therefore he is continually inconsistent with himself. He says, for example, in speaking of the suspension of social duties in war time: "If the war is justifiable, the ethics of warfare come at once into play. It would be absurd to say that it is right to kill an enemy, but not to deceive him. Falsehood, it may be admitted, as military strategy, is justifiable, if the war is righteous."

Here, again, is the interchange of the terms "deception" and "falsehood." But unless this is an intentional jugglery of words, which is not to be supposed, this means that it would be absurd to say that it is right to kill an enemy, but not right to tell him a falsehood. And nothing could more clearly show Dr. Smyth's error of mind on this whole subject than this declaration. "Absurd" to claim that while it is right to

take a man's life in open warfare, in a just cause, it would not be right to forfeit one's personal worth, and to destroy one's personal integrity, which Dr. Smyth says are involved in a falsehood! "Absurd" to claim that while God who is the author of life can justify the taking of life, he cannot justify the sin of lying! No, no, the absurdity of the case is not on _that_ side of the line.

There is no consistency of argument on this subject in Dr. Smyth's work. His premises are sound. His reasoning is confused and inconsistent. "Not only in some cases of necessity is falsehood permissible, but we may recognize a positive obligation of love to the concealment of the truth," he says. Here again is that apparent confounding of unjustifiable "falsehood" with perfectly proper "concealment of truth." He continues: "Other duties which under such circumstances have become paramount, may require the preservation of one's own or another's life through a falsehood. Not only ought one not to tell the truth under the supposed conditions, but, if the principle assumed be sound, a good conscience may proceed to enforce a positive obligation of untruthfulness.... There are occasions when the interests of society and the highest motives of Christian love may render it much more preferable to discharge the duty of self-defense through the humanity of a successful falsehood, than by the barbarity of a stunning blow or a pistol-shot. General benevolence demands that the lesser evil, if possible, rather than the greater, should be inflicted on another."

Just compare these conclusions of Dr. Smyth with his own premises. "Truthfulness ... is an obligation which every man owes to himself. It is a primal personal obligation.... Truthfulness is the self-consistency of character; falsehood is a breaking up of the moral integrity." "The liar is rightly regarded as an enemy to mankind. A lie is not only an affront against the person to whom it is told, but it is an offense against humanity." But what of all that? "There are occasions when the interests of society and the highest motives of Christian love may render it much more preferable to discharge the duty of self-defense through the humanity of a successful falsehood, than by the barbarity of a stunning blow or a pistol-shot. General benevolence demands that the lesser evil, if possible, rather than the greater, should be inflicted on another." Better break up one's moral integrity, and fail in one's primal personal obligation to himself,--better become an enemy of mankind, and commit an offense against humanity,--than defend one's self against an outlaw by the barbarity of a stunning blow or a bullet!

Would any one suppose from his premises that Dr. Smyth looked upon personal truthfulness as a minor virtue, and upon falsehood as a lesser vice? Does he seem in those premises to put veracity below chastity, and falsehood below personal impurity? Yet is he to be understood as intimating, in this phase of his argument, that unchastity, or dishonesty, or any other vice than falsehood, is to be preferred, in practice, over a stunning blow or a fatal bullet against a would-be murderer?[1] The looseness of Dr. Smyth's logic, as indicated in this reasoning on the subject of veracity, would in its tendency be destructive to the safeguards of personal virtue and of social purity; and his arguments for the lie of exigency are similar to those which are put forward in excuse for common sins against chastity, by the free-and-easy

defenders of a lax standard in such matters. "Some moralists," says the average young man of the world, "in their extreme regard for personal purity, will not admit that any act of unchastity is necessary, even to protect one's health, or as an act of love. But the men of virility and strong feeling will let down occasionally at this point, in spite of the moralists. Which should be followed,--the philosophic morality, or the practice of many otherwise decent and very respectable men?"

[Footnote 1: See Augustine's words on this point, quoted at p. 100, _supra_.]

Confounding, as always, a wise and right concealment of truth with actual falsehood, Dr. Smyth says of the duty of a teacher in the matter of imparting truth to a pupil according to the measure of the pupil's ability to receive it: "An occasional friendly use of truth as a crash towel may be wholesome; but ordinarily there is a more excellent way." _That_ is a counting of truth precious, with a vengeance!

Dr. Smyth seems inclined to accept in the main the conclusions, on this whole subject, of Rothe, but without Rothe's measure of consistency in the argument. Rothe starts wrong, and of course ends wrong. Dr. Smyth, like Dr. Hodge, starts right and ends wrong. No sorer condemnation of Dr. Smyth's position can be made, than by the simple presentation of his own review of his own argument, when he says: "To sum up, then, what has been said concerning the so-called lies of necessity, the principle to be applied with wisdom is simply this: give the truth always to those who in the bonds of humanity have the right to the truth; conceal it or falsify it only when it is unmistakably evident that the human right to the truth from others has been forfeited, or temporarily is held in abeyance by sickness, weakness, or some criminal intent: do not in any case prevaricate, unless you can tell the necessary falsehood deliberately and positively, from principle, with a good conscience void of offense toward men, and sincere in the sight of God." What says the moral sense of humanity to such a position as that?

As over against the erroneous claim, made by Richard Rothe, and Newman Smyth, and others, that the "moral sense" of mankind is at variance with the demands of "rigid moralists," in regard to the unjustifiableness of falsehood, it is of interest to note the testimony of strong thinkers, who have written on this subject with the fullest freedom, from the standpoint of speculative philosophy, rather than of exclusively Christian ethics. For example, James Martineau, while a Christian philosopher, discusses the question of veracity as a philosopher, rather than as a Christian, in his "Types of Ethical Theory;"[1] and he insists that "veracity is strictly natural, that is, it is implied in the very nature which leads us to intercommunion in speech."

[Footnote 1: Martineau's _Types of Ethical Theory_, II., 255-265.]

As he sees it, a man is treacherous to himself who speaks falsely at any time to any one, and the man's moral sense recoils from his action accordingly. Dr. Martineau says: "It is perhaps, the peculiar _treachery_ of this process which fixes upon falsehood a stamp of _meanness_ quite exceptional; and renders it impossible, I think, to yield to its inducements, even in cases supposed to be venial, without a disgust little distinguishable from compunction. This must have been Kant's feeling when he

said: 'A lie is the abandonment, or, as it were, the annihilation of the dignity of man.'"

Dr. Martineau is not so rigid a moralist but that he is ready to agree with those easy-going theologians who find a place for exceptional falsehoods in their reasoning; yet he is so true a man in his moral instincts that his nature recoils from the results of such reasoning. "After all," he says, "there is something in this problem which refuses to be thus laid to rest; and in treating it, it is hardly possible to escape the uneasiness of a certain moral inconsequence. If we consult the casuist of Common Sense he usually tells us that, in theory, Veracity can have no exceptions; but that, in practice, he is brought face to face with at least a few; and he cheerfully accepts a dispensation, when required, at the hands of Necessity.

"I confess rather to an inverse experience. The theoretic reasons for certain limits to the rule of veracity appear to me unanswerable; nor can I condemn any one who acts in accordance with them. Yet when I place myself in a like position, at one of the crises demanding a deliberate lie, an unutterable repugnance returns upon me, and makes the theory seem shameful. If brought to the test, I should probably act rather as I think than as I feel,[1] without, however, being able to escape the stab of an instant compunction and the secret wound of a long humiliation. Is this the mere weakness of superstition? It may be so. But may it not also spring from an ineradicable sense of a common humanity, still leaving social ties to even social aliens, and, in the presence of an imperishable fraternal unity, forbidding to the individual of the moment the proud right of spiritual ostracism?..."

[Footnote 1: No, a man who feels like that would be true in the hour of temptation. His doubt of himself is only the tremulousness of true courage.]

"How could I ever face the soul I had deceived, when perhaps our relations are reversed, and he meets my sins, not with self-protective repulse, but with winning love? And if with thoughts like these there also blends that inward reverence for reality which clings to the very essence of human reason, and renders it incredible, _à priori_, that falsehood should become an implement of good, it is perhaps intelligible how there may be an irremediable discrepancy between the dioptric certainty of the understanding and the immediate insight of the conscience: not all the rays of spiritual truth are refrangible; some there are beyond the intellectual spectrum, that wake invisible response, and tremble in the dark."

Dr. Martineau's definition of right and wrong is this:[1] "Every action is right, which, in presence of a lower principle, follows a higher: every action is wrong, which, in presence of a higher principle, follows a lower;" and his moral sense will not admit the possibility of falsehood being at any time higher than truth, or of veracity ever being lower than a lie.

[Footnote 1: _Types of Ethical Theory_, II., 270.]

Professor Thomas Fowler, of the University of Oxford, writing as a believer in the gradual evolution of morals, and basing his philosophy on experience without any recognition of _à priori_ principles, is much more nearly in accord, at this point,[1] with Martineau, than with Rothe, Hodge, and Smyth. Although he is ready to concede that a lie may, theoretically, be justifiable, he is sure that the moral sense of mankind

is, at the present state of average development, against its propriety. Hence, he asserts that, even when justice might deny an answer to an improper question, "outside the limits of justice, and irrespectively of their duty to others, many persons are often restrained, and quite rightly so, from returning an untruthful or ambiguous answer by purely self-regarding feelings. They feel that to give an untruthful answer, even under such circumstances as I have supposed, would be to burden themselves with the subsequent consciousness of cowardice or lack of self-respect. And hence, whatever inconvenience or annoyance it may cost them, they tell the naked truth, rather than stand convicted to themselves of a want of courage or dignity."

[Footnote 1: _Principles of Morals_, II., 159-161.]

"Veracity, though this was by no means always the case," Professor Fowler continues, "has become the point of honor in the upper ranks of modern civilized societies, and hence it is invested with a sanctity which seems to attach to no other virtue; and to the uninstructed conscience of the unreflective man, the duty of telling the truth appears, of all duties, to be the only duty which never admits of any exceptions, from the unavoidable conflict with other duties." He ranges the moral sense of the "upper ranks of modern civilized societies," and "the uninstructed conscience of the unreflective man," against any tolerance of the "lie of necessity," leaving only the locality of Muhammad's coffin for those who are arrayed against the rigid moralists on this question.

While he admits the theoretical possibility of the "lie of necessity," Professor Fowler concludes as to its practical expediency: "Without maintaining that there are no conceivable circumstances under which a man will be justified in committing a breach of veracity, it may at least be said that, in the lives of most men, there is no case likely to occur in which the greater social good would not be attained by the observation of the general rule to tell the truth, rather than by the recognition of an exception in favor of a lie, even though that lie were told for purely benevolent reasons." That is nearer right than the conclusions of many an inconsistent intuitionist!

Leslie Stephen, a consistent agnostic, and a believer in the slow evolution of morals, in his "Science of Ethics,"[1] naturally holds, like Herbert Spencer, to the gradual development of the custom of truthfulness, as a necessity of society.[2] The moral sense of primitive man, as he sees it, might seem to justify falsehood to an _enemy_, rather than, as Rothe and Smyth would claim, to those who are _wards of love_. In illustration of this he says: "The obligation to truthfulness is [primarily] limited to relations with members of the same tribe or state; and, more generally, it is curious to observe how a kind of local or special morality is often developed in regard to this virtue. The schoolboy thinks it a duty to his fellows to lie to his master, the merchant to his customer, and the servant to his employer; and, inversely, the duty is often recognized as between members of some little clique or profession, as soon as it is seen to be important for their corporate interest, even at the expense of the wider social organization. There is honor among thieves, both of the respectable and other varieties."

[Footnote 1: Leslie Stephen's _Science of Ethics_, pp. 202-209.]

[Footnote 2: See pp. 26-32, _supra_.]

But Leslie Stephen sees that, in the progress of the race, the importance of veracity has come to a recognition, "in which it differs from the other virtues." While the law of marriage may vary at different periods, "the rule of truthfulness, on the other hand, seems to possess the _a priori_ quality of a mathematical axiom.... Truth, in short, being always the same, truthfulness must be unvarying. Thus, 'Be truthful' means, 'Speak the truth whatever the consequences, whether the teller or the hearer receives benefit or injury.' And hence, it is inferred, truthfulness implies a quality independent of the organization of the agent or of society." While Mr. Stephen would himself find a place for the "lie of necessity" under conceivable circumstances, he is clear-minded enough to perceive that the moral sense of the civilized world is opposed to this view; and in this he is nearer correct than those who claim the opposite.

It is true that those who seek an approbation of their defense of falsehoods which they deem a necessity, assume, without proof, their agreement with the moral sense of the race. But it is also true that there stands opposed to their theory the best moral sense of primitive man, as shown in a wide area of investigation, and also of thinkers all the way up from the lowest moral grade to the most rigorous moralists, including intuitionists, utilitarians, and agnostics. However deficient may be the practice of erring mortals, the ideal standard in theory, is veracity, and not falsehood.

As to the opinions of purely speculative philosophers, concerning the admissibility of the "lie of necessity," they have little value except as personal opinions. This question is one that cannot be discussed fairly without relation to the nature and law of God. It is of interest, however, to note that a keen mind like Kant's insists that "the highest violation of the duty owed by man to himself, considered as a moral being singly (owed to the humanity subsisting in his person), is a departure from truth, or lying."[1] And when a man like Fichte,[2] whom Carlyle characterizes as "that cold, colossal, adamantine spirit, standing erect like a Cato Major among degenerate men; fit to have been the teacher of the Stoa, and to have discoursed of beauty and virtue in the groves of Academe," declares that no measure of evil results from truth-speaking would induce him to tell a lie, a certain moral weight attaches to his testimony. And so with all the other philosophers. No attempt at exhaustiveness in their treatment is made in this work. But the fullest force of any fresh argument made by them in favor of occasional lying is recognized so far as it is known.

[Footnote 1: See Semple's _Kant's Metaphysic of Ethics_, p. 267.]

[Footnote 2: See Martensen's _Christian Ethics (Individual)_, § 97.]

One common misquotation from a well-known philosopher, in this line, is, however, sufficiently noteworthy for special mention here. Jacobi, in his intense theism, protests against the unqualified idealism of Fichte, and the indefinite naturalism of Schelling; and, in his famous Letter to Fichte,[1] he says vehemently: "But the Good what is it? I have no answer if there be no God. As to me, this world of phenomena--if it have all its truth in these phenomena, and no more profound significance, if it have

nothing beyond itself to reveal to me--becomes a repulsive phantom, in whose presence I curse the consciousness which has called it into existence, and I invoke against it annihilation as a deity. Even so, also, everything that I call good, beautiful, and sacred, turns to a chimera, disturbing my spirit, and rending the heart out of my bosom, as soon as I assume that it stands not in me as a relation to a higher, real Being,--not a mere resemblance or copy of it in me;--when, in fine, I have within me an empty and fictitious consciousness only. I admit also that I know nothing of 'the Good _per se_,' or 'the True _per se_,' that I even have nothing but a vague notion of what such terms stand for. I declare that it revolts me when people seek to obtrude upon me the Will which wills nothing, this empty nut of independence and freedom in absolute indifference, and accuse me of atheism, the true and proper godlessness, because I show reluctance to accept it."

[Footnote 1: F.H. Jacobi's _Werke_, IIIter Band, pp. 36-38.]

Insisting thus that he must have the will of a personal God as a source of obligation to conform to the law of truth and virtue, and that without such a source no assumed law can be binding on him, Jacobi adds: "Yes I am the atheist, and the godless man who, in opposition to the Will that wills nothing, will lie as the lying Desdemona lied; will lie and deceive as did Pylades in passing himself off as Orestes; will commit murder as did Timoleon; break law and oath as did Epaminondas, as did John De Witt; will commit suicide as did Otho; will undertake sacrilege with David; yes and rub ears of corn on the Sabbath merely because I am an hungered, and because the law is made for man and not man for the law."

Jacobi's reference, in this statement, to lying and other sins, was taken by itself as the motto to one of Coleridge's essays;[1] and this seems to have given currency to the idea that Jacobi was in favor of lying. Hence he is unfairly cited by ethical writers[2] as having declared himself for the lie of expediency; whereas the context shows that that is not his position. He is simply stating the logical consequences of a philosophy which he repudiates.

[Footnote 1: Coleridge's Works: _The Friend_, Essay XV.]

[Footnote 2: See, for instance, Martensen's _Christian Ethics (Individual)_, §97.]

Among the false assumptions that are made by many of the advocates of the "lie of necessity" is the claim that in war, in medical practice, and in the legal profession, the propriety of falsehood and deceit, in certain cases, is recognized and admitted on all sides. While the baselessness of this claim has been pointed out, incidentally, in the progress of the foregoing discussion,[1] it would seem desirable to give particular attention to the matter in a fuller treatment of it, before closing this record of centuries of discussion.

[Footnote 1: See pp. 71-75, _supra_.]

It is not true that in civilized warfare there is an entire abrogation, or suspension, of the duty of truthfulness toward an enemy. There is no material difference between war and peace in this respect. Enemies, on both sides, understand that in warfare they are to kill each other if they can, by the use of means that are allowable as

means; but this does not give them the privilege of doing what is utterly inconsistent with true manhood.

Enemies are not bound to disclose their plans to each other. They have a duty of concealing those plans from each other. Hence, as Dorner has suggested, they proffer to each other's sight only appearances, not assurances; and it is for each to guess out, if he can, the real purpose of the other, below the appearance. An enemy can protect his borders by pitfalls, or torpedoes, or ambushes, carefully concealed from sight, in order to guard the life of his own people by destroying the life of his opponents, or may make demonstrations, before the enemy, of possible movements, in order to conceal his purposed movements; but in doing this he does only what is allowable, in effect, in time of peace.[1]

[Footnote 1: Several of the illustrations of Oriental warfare in the Bible record are to be explained in accordance with this principle. Thus with the ambush set by Joshua before Ai (Josh. 8: 1-26): the Canaanites did not read aright the riddle of the Israelitish commander, and they suffered accordingly. Yet Dr. Dabney (_Theology_, p. 424) cites this as an instance of an intentional deception which was innocent in God's sight. And again, in the case recorded at 2 Kings 7: 6, where the Lord "made the host of the Syrians to hear a noise of chariots, and a noise of horses, even the noise of a great host,... and they arose and ... fled for their life," thinking that Hittite and Egyptian forces were approaching, it is evident that God simply caused the Syrians, who were contending with his people, to feel that they were fighting hopelessly against God's cause. The impression God made on their minds was a correct one. He could bring chariots and horses as a great host against them. They did well to realize this fact. But the Syrians' explanation of this impression was incorrect in its details.]

A similar method of mystifying his opponent is adopted by the base-ball pitcher in his demonstrations with the ball before letting it drive at the batsman. The batsman holds himself responsible for reading the riddle of the pitcher's motions. Yet the pitcher is forbidden to deceive the batsman by a feint of delivering the ball without delivering it.

If an enemy attempts any communication with his opponent, he has no right to lie to, or to deceive him. He must not draw him into an ambuscade, or over concealed torpedoes, on the plea of desiring an amicable interview with him; and his every word given to an enemy must be observed sacredly as an obligation of truth.

Even before the Christian era, and centuries prior to the time when Chrysostom was confused in his mind on this point, Cicero wrote as to the obligations of veracity upon enemies in time of war, and in repudiation of the idea that warfare included a suspension of all moral relations between belligerents during active hostilities.[1]

[Footnote 1: Cicero's _De Officiis_, I., 12, 13.]

He said: "The equities of war are prescribed most carefully by the heralds' law (_lex fetialis_) of the Roman people," and he went on to give illustrations of the recognized duty of combatants to keep within the bounds of mutual social obligations. "Even where private persons, under stress of circumstances, have made any promise to the enemy," he said, "they should observe the exactest good faith, as did Regulus,

in the first Punic war, when taken prisoner and sent to Rome to treat of the exchange of prisoners, having sworn that he would return. First, when he had arrived, he did not vote in the Senate for the return of the prisoners. Then, when his friends and kinsmen would have detained him, he preferred to go back to punishment rather than evade his faith plighted to the enemy.

"In the second Punic war also, after the battle of Cannae, of the ten Romans whom Hannibal sent to Rome bound by an oath that they would return unless they obtained an agreement for the redemption of prisoners, the censors kept disfranchised those who perjured themselves, making no exception in favor of him who had devised a fraudulent evasion of his oath. For when by leave of Hannibal he had departed from the camp, he went back a little later, on pretense of having forgotten something. Then departing again from the camp [without renewing his oath], he counted himself set free from the obligation of his oath. And so he was free _so_ far as the words went, but not so in reality; for always in a promise we must have regard to the meaning of our words, rather than to the words themselves."

In modern times, when Lord Clive, in India, acted on the theory that an utter lack of veracity and good faith on the part of an enemy justified a suspension of all moral obligations toward him, and practiced deceit on a Bengalee by the name of Omichund, in order to gain an advantage over the Nabob of Bengal, he was condemned by the moral sense of the nation for which he thus acted deceitfully; and, in spite of the specious arguments put forth by his partisan defenders, his name is infamous because of this transaction.

"English valor and English intelligence have done less to extend and preserve our Oriental empire than English veracity," says Lord Macaulay. "All that we could have gained by imitating the doublings, the evasions, the fictions, the perjuries, which have been employed against us, is as nothing when compared with what we have gained by being the one power in India on whose word reliance can be placed. No oath which superstition can devise, no hostage however precious, inspires a hundredth part of the confidence which is produced by the 'yea, yea,' and the 'nay, nay,' of a British envoy." Therefore it is that Lord Macaulay is sure that "looking at the question of expediency in the lowest sense of the word, and using no arguments but such as Machiavelli might have employed in his conferences with Borgia, we are convinced that Clive was altogether in the wrong, and that he committed, not merely a crime but a blunder."[1]

[Footnote 1: Macaulay's _Essay on Lord Clive_.]

So again when an English vessel of war made signals of distress, off the coast of France, during the war with Napoleon, and thereby deceived men from the enemy into coming to its relief, and then held them as prisoners, the act was condemned by the moral sense of the world. As Woolsey says, in his "International Law:"[1] "Breach of faith between enemies has always been strongly condemned, and that vindication of it is worthless which maintains that, without an express or tacit promise to our enemy, we are not bound to keep faith with him."

[Footnote 1: Sect. 133, p. 213.]

The theologian who assumes that the duty of veracity is suspended between enemies in war time is ignorant of the very theory of civilized warfare; or else he fails to distinguish between justifiable concealment, by the aid of methods of mystifying, and falsehood which is never justifiable. And that commander who should attempt to justify falsehood and bad faith in warfare on the ground that it is held justifiable in certain works on Christian ethics, would incur the scorn of the civilized world for his credulity; and he would be told that it is absurd to claim that because he is entitled to kill a man in warfare it must be fair to lie to him.

In the treatment of the medical profession, many writers on ethics have been as unfair, as in their misrepresentation of the general moral sense with reference to warfare. They have spoken as if "the ethics of the medical profession" had a recognized place for falsehood in the treatment of the sick. But this assumption is only an assumption. There are physicians who will lie, and there are physicians who will not lie; and in each case the individual physician acts in this matter on his own responsibility: he has no code of professional ethics justifying a lie on his part as a physician, when it would not be justifiable in a layman.

Concealment of that which he has a right to conceal, is as clearly a duty, in many a case, on the part of a physician, as it is on the part of any other person; but falsehood is never a legitimate, or an allowable, means of concealment by physician or layman. As has been already stated[1] if it be once known that a physician is ever ready to speak words of cheer to a patient falsely, that physician is measurably deprived of the possibility of encouraging a patient by truthful words of cheer when he would gladly do so. And physicians would probably be surprised to know how generally they are estimated in the community according to their reputation in this matter. One is known as a man who will speak falsely to his patients as a means of encouragement, while another is known as a man who will be cautious about giving his opinion concerning chances of recovery, but who will never tell an untruth to a patient or to any other person. But in no case can a physician claim that the ethics of his profession as a profession justify him in a falsehood to any person--patient or no patient.

[Footnote 1: See p. 75 f., _supra_.]

A distinguished professor in one of the prominent medical colleges of this country, in denying the claim of a writer on ethics that it may become the duty of a physician to deceive his patient as a means of curing him, declares that a physician acting on this theory "will not be found in accord with the best and the highest medical teaching of the present day;" and he goes on to say:[1] "In my profession to-day, the truth properly presented, we have found, carries with it a convincing and adjusting element which does not fail to bring the afflicted person to that condition of mind that is most conducive to his physical well-being, and let me add also, I believe, to his spiritual welfare." This statement was made in connection with the declaration that in the hospital which was in his charge it is not deemed right or wise to deceive a patient as to any operation to be performed upon him. And there are other well-known physicians who testify similarly as to the ethics of their profession.

[Footnote 1: In a personal communication to the author.]

An illustration of the possible good results of concealing an unpleasant fact from a sick person, that has been a favorite citation all along the centuries with writers on ethics who would justify emergency falsehoods, is one which is given in his correspondence by Pliny the younger, eighteen centuries ago.[1]

[Footnote 1: _Epistles of Pliny the Younger_, Book III., Epis. 16. Pliny to Nepos.]

Caecinna Paetus and his son "were both at the same time attacked with what seemed a mortal illness, of which the son died.... His mother [Arria] managed his funeral so privately that Paetus did not know of his death. Whenever she came into his bedchamber, she pretended that her son was better, and, as often as he inquired after his health, would answer that he had rested well, or had eaten with an appetite. When she found she could no longer restrain her grief, but her tears were gushing out, she would leave the room, and, having given vent to her passion, return again with dry eyes and a serene countenance, as if she had dismissed every sentiment of sorrow."

This Roman matron also committed suicide, as an encouragement to her husband whom she desired to have put an end to his own life, when he was likely to have it taken from him by the executioner; and Pliny commends her nobleness of conduct in both cases. It is common among ethical writers, in citing this instance in favor of lying, to say nothing about the suicide, and to omit mention of the fact that the mother squarely lied, by saying that her dead boy had eaten a good breakfast, instead of employing language that might have been the truth as far as it went, while it concealed that portion of the truth which she thought it best to conceal. It is common to quote her as simply saying of her son" He is better;"[1] quite a different version from Pliny's, and presenting a different issue.

[Footnote 1: See Newman Smyth's _Christian Ethics_, p. 395, where this case is stated with vagueness of phrase, and as thus stated is approved.]

It was perfectly proper for that mother to conceal the signs of her sorrow from her sick husband, who had no right to know the truth concerning matters outside of his sick-room at such a time. And if, indeed, she could say in all sincerity, as expressive of her feelings in the death of her son, by the will of the gods, "He is better," it would have been possible for her to feel that she was entitled to say that as the truth, and not as a falsehood; and in that case she would not have intended a deceit, but only a concealment. But when, on the other hand, she told a deliberate lie--spoke falsely in order to deceive--she committed a sin in so doing, and her sin was none the less a sin because it resulted in apparent good to her husband. An illustration does not overturn a principle, but it may misrepresent it.

Another illustration, on the other side of the case, is worth citing here. Victor Hugo pictures, in his _Les Miserables_,[1] a sister of charity adroitly concealing facts from a sick person in a hospital, while refusing to tell a falsehood even for the patient's good. "Never to have told a falsehood, never to have said for any advantage, or even indifferently, a thing which was not the truth, the holy truth, was the characteristic feature of Sister Simplice." She had taken the name of Simplice through special

choice. "Simplice, of Sicily, our readers will remember, is the saint who sooner let her bosom be plucked out than say she was a native of Segeste, as she was born at Syracuse, though the falsehood would have saved her. Such a patron saint suited this soul." And in speaking of Sister Simplice, as never having told even "a white lie," Victor Hugo quotes a letter from the Abbé Sicard, to his deaf-mute pupil Massieu, on this point: "Can there be such a thing as a white lie, an innocent lie? Lying is the absolute of evil. Lying a little is not possible. The man who lies tells the whole lie. Lying is the face of the fiend; and Satan has two names,--he is called Satan and Lying." Victor Hugo the romancer would seem to be a safer guide, so far, for the physician or the nurse in the sick-room, than Pliny the rhetorician, or Rothe the theologian.[2]

[Footnote 1: Book VII.]

[Footnote 2: Yet Victor Hugo afterwards represents even Sister Simplice as lying unqualifiedly, when sorely tempted--although not in the sick-room.]

A well-known physician, in speaking to me of this subject, said: "It is not so difficult to avoid falsehood in dealing with anxious patients as many seem to suppose. _Tact_, as well as _principle_, will do a good deal to help a physician out, in an emergency. I have never seen any need of lying, in my practice." And yet another physician, who had been in a widely varied practice for forty years, said that he had never found it necessary to tell a lie to a patient; although he thought he might have done so if he had deemed it necessary to save a patient's life. In other words, while he admitted the possible justification of an "emergency lie," he had never found a first-class opening for one in his practice. And he added, that he knew very well that if he had been known to lie to his patients, his professional efficiency, as well as his good name, would have suffered. Medical men do not always see, in their practice, the supposed advantages of lying, which have so large prominence in the minds of ethical writers.

Another profession, which is popularly and wrongly accused of having a place for the lie in its system of ethics, is the legal profession. Whewell refers to this charge in his "Elements of Morality" (citing Paley in its support). He says: "Some moralists have ranked with the cases in which convention supersedes the general rule of truth, an advocate asserting the justice, or his belief in the justice, of his client's cause." But as to an advocate's right in this matter, Whewell says explicitly: "If, in pleading, he assert his belief that his cause is just, when he believes it unjust, he offends against truth; as any other man would do who, in like manner, made a like assertion."[1]

[Footnote 1: Whewell's _Elements of Morality_, § 400.]

Chief-Justice Sharswood, of Pennsylvania, in his standard work on "Legal Ethics," cites this opinion of Whewell with unqualified approval; and, in speaking for the legal profession, he says: "No counsel can with propriety and good conscience express to court or jury his belief in the justice of his client's cause, contrary to the fact. Indeed, the occasions are very rare in which he ought to throw the weight of his private opinion into the scales in favor of the side he has espoused." Calling attention to the fact that the official oath of an attorney, on his admission to the bar, in the state of Pennsylvania, includes the specific promise to "use no falsehood," he says: "Truth in

all its simplicity--truth to the court, client, and adversary--should be indeed the polar star of the lawyer. The influence of only slight deviations from truth upon professional character is very observable. A man may as well be detected in a great as a little lie. A single discovery, among professional brethren, of a failure of truthfulness, makes a man the object of distrust, subjects him to constant mortification, and soon this want of confidence extends itself beyond the Bar to those who employ the Bar. That lawyer's case is truly pitiable, upon the escutcheon of whose honesty or truth rests the slightest tarnish."[1]

[Footnote 1: Sharswood's _Essay on Professional Ethics_, pp. 57, 99,102,167 f.]

As illustrative of the carelessness with which popular charges against an entire profession are made the basis of reflections upon the ethical standard of that profession, the comments of Dr. Hodge on this matter are worthy of particular notice. In connection with his assertion that "the principles of professional men allow of many things which are clearly inconsistent with the requirements of the ninth commandment," he says: "Lord Brougham is reported to have said, in the House of Lords, that an advocate knows no one but his client. He is bound _per fas et nefas_, if possible, to clear him. If necessary for the accomplishment of that object, he is at liberty to accuse and defame the innocent, and even (as the report stated) to ruin his country. It is not unusual, especially in trials for murder, for the advocates of the accused to charge the crime on innocent parties and to exert all their ingenuity to convince the jury of their guilt." And Dr. Hodge adds the note that "Lord Brougham, according to the public papers, uttered these sentiments in vindication of the conduct of the famous Irish advocate Phillips, who on the trial of Courvoisier for the murder of Lord Russell, endeavored to fasten the guilt on the butler and housemaid, whom he knew to be innocent, as his client had confessed to him that he had committed the murder."[1]

[Footnote 1: Hodge's _Systematic Theology_, III., 439.]

Now the facts, in the two very different cases thus erroneously intermingled by Dr. Hodge, as given by Justice Sharswood,[1] present quite another aspect from that in which Dr. Hodge sees them, as bearing on the accepted ethics of the legal profession. It would appear that Lord Brougham was not speaking in defense of another attorney's action, but in defense of his own course as attorney of Queen Caroline, thirty years before the Courvoisier murder trial. As Justice Sharswood remarks of Lord Brougham's "extravagant" claims: "No doubt he was led by the excitement of so great an occasion to say what cool reflection and sober reason certainly never can approve." Yet Lord Brougham does not appear to have suggested, in his claim, that a lawyer had a right to falsify the facts involved, or to utter an untruth. He was speaking of his supposed duty to defend his client, the Queen, against the charges of the King, regardless of the consequences to himself or to his country through his advocacy of her cause, which he deemed a just one.

[Footnote 1: Sharswood's _Legal Ethics_, p. 86 f.]

And as to the charge against the eminent advocate, Charles Phillips, of seeking to fasten the crime on the innocent, when he knew that his client was guilty, in the trial

of Courvoisier for the murder of Lord Russell, that charge was overwhelmingly refuted by the testimony of lawyers and judges present at that trial. Mr. Phillips supposed his client an innocent man until the trial was nearly concluded. Then came the unexpected confession from the guilty man, accompanied by the demand that his counsel continue in his case to the end. At first Mr. Phillips proposed to retire at once from the case; but, on advising with eminent counsel, he was told that it would be wrong for him to betray the prisoner's confidence, and practically to testify against him, by deserting him at that hour. He then continued in the case, but, as is shown conclusively in his statement of the facts, with its accompanying proofs, without saying a word or doing a thing that might properly be deemed in the realm of false assertion or intimations.[1]

[Footnote 1: See Sharswood's _Legal Ethics_, pp. 103-107, 183-196.]

The very prominence given in the public press to the charges against Mr. Phillips, and to their refutation, are added proof that the moral sense of the community is against falsehood under any circumstances or in any profession.

Members of the legal profession are bound by the same ethical obligations as other men; yet the civil law, in connection with which they practice their profession, is not in all points identical with the moral law; although it is not in conflict with any of its particulars. As Chancellor Kent says: "Human laws are not so perfect as the dictates of conscience, and the sphere of morality is more enlarged than the limits of civil jurisdiction. There are many duties that belong to the class of imperfect obligations, which are binding on conscience, but which human laws do not and cannot undertake directly to enforce. But when the aid of a Court of Equity is sought to carry into execution ... a contract, then the principles of ethics have a more extensive sway."[1]

[Footnote 1: Kent's _Commentaries_, Lect. 39, p. 490 f. (4th ed.); cited in Story's _Equity Jurisprudence_, VI., p. 229 (13th ed.).]

In the decisions of Equity courts, while the duty of absolute truthfulness between parties in interest is insisted on as vital, and a suppression of the truth from one who had a right to its knowledge, or a suggestion of that which is untrue in a similar case("_suggestio falsi aut suppressio veri_"), is deemed an element of fraud, the distinction between mere silence when one is entitled to be silent, and concealment with the purpose of deception, is distinctly recognized, as it is not in all manuals on ethics.[1] This is indicated, on the one hand, in the legal maxim _Aliud est celare, aliud tacere_,--"It is one thing to conceal, another to be silent;" silence is not necessarily deceptive concealment;[2] and on the other hand in such a statement as this, in Benjamin's great work on Sales: "The nondisclosure of hidden facts [to a party in interest] is the more objectionable when any artifice is employed to throw the buyer off his guard; as by telling half the truth."[3] It is not in any principles which are recognized by the legal profession as binding on the conscience, that loose ethics are to find defense or support.

[Footnote 1: See Bispham's _Principles of Equity_, p. 261, (3d ed.); Broom's _Legal Maxims_, p. 781 f. (7th Am. ed.); Merrill's _American and English Encyclopedia of Law_, art. "Fraud."]

[Footnote 2: See Anderson's _Dictionary of Law_, p. 220; Abbott's _Law Dictionary_, I., 53.]

[Footnote 3: _Treatise on the Law of Sale of Personal Property_, p. 451 f.]

But the profession that has most at stake in this discussion, and that, indeed, is most involved in its issue, is the ministerial, or clerical, profession. While it was Jewish rabbis who affirmed most positively, in olden time, the unwavering obligations of truthfulness, it was Jewish rabbis, also, who sought to find extenuation or excuse for falsehoods uttered with a good intention. And while it was Christian Fathers, like the Shepherd of Hermas, and Justin Martyr, and Basil the Great, and Augustine, who insisted that no tolerance should be allowed to falsehood or deceit, it was also Christian Fathers, like Gregory of Nyssa, and Chrysostom, who having practiced deceit for what they deemed a good end, first attempted a special plea for such falsities as they had found convenient in their professional labors. And it was other Christian Fathers, like Origen and Jerome, who sought to find arguments for laxity of practice, at this point, in the course of the Apostles themselves.

All the way along the centuries, while the strongest defenders of the law of truthfulness have been found among clergymen, more has been written in favor of the lie of necessity by clergymen than by men of any other class or profession. And if it be true, as many of these have claimed, that deceit and falsehood are a duty, on the part of a God-loving teacher, toward those persons who, through weakness, or mental incapacity, or moral obliquity, are in the relation to him of wards of love, or of subjects of guardianship, there is no profession in which there is more of a call for godly deception, and for holy falsehood, than the Christian ministry. If it be true that a lie, or a falsehood, is justifiable in order to the saving of the physical life of another, how much better were it to tell such a lie in the loving desire to save a soul.

If the lie of necessity be allowable for any purpose, it would seem to be more important as a means of good in the exercise of the ministerial profession, than of any other profession or occupation. And if it be understood that this is the case, what dependence can be put, by the average hearer, on the most earnest words of a preacher, who may be declaring a truth from God, and who, on the other hand, may be uttering falsehoods in love? And if it be true, also, as some of these clergymen have claimed, that God specifically approved falsehood and deception, according to the Bible record, and that Jesus Christ practiced in this line, while here on earth, what measure of confidence can fallible man place in the sacred text as it has come to him? The statement of this view of the case, is the best refutation of the claim of a possible justification for the most loving lie imaginable.

The only other point remaining untouched, in this review of the centuries of discussion concerning the possible justifiableness of a lie under conceivable circumstances, is in its relation to the lower animals. It has been claimed that "all admit" that there is no impropriety in using any available means for the decoying of fish or of beasts to their death, or in saving one's self from an enraged animal; hence that a lie is not to be counted as a sin _per se_, but depends for its moral value on the relation subsisting between its utterer and the one toward whom it is uttered.

Dr. Dabney, who is far less clear and sound than Dr. Thornwell in his reasoning on this ethical question, says: "I presume that no man would feel himself guilty for deceiving a mad dog in order to destroy him;"[1] and he argues from this assumption that when a man, through insanity or malice, "is not a rational man, but a brute," he may fairly be deemed as outside of the pale of humanity, so far as the obligations of veracity, viewed only as a social virtue, are concerned.

[Footnote 1: Dabney's _Theology_ (second edition), p. 425 f.]

Dr. Newman Smyth expands this idea.[1] He says: "We may say that animals, strictly speaking, can have no immediate right to our words of truth, since they belong below the line of existence which marks the beginning of any functions of speech." He adds that animals "may have direct claims upon our humanity, and so indirectly put us under obligations to give them straightforward and fair treatment," and that "truthfulness to the domestic animal, to the horse or the dog, is to be included as a part of our general obligation of kindness to creatures that are entirely dependent upon our fidelity to them and their wants." But he cites the driving of horses with blinders,[2] and the fishing for trout with artificial flies, as evidence of the fact that man recognizes no sinfulness in the deceiving of the lower animals, and hence that the duty of veracity is not one of universal obligation.

[Footnote 1: Smyth's _Christian Ethics_, p. 398.]

[Footnote 2: Here is another illustration of Dr. Smyth's strange confusion of concealment with deception. It would seem as though a man must have blinders before his own eyes, to render him incapable of perceiving the difference between concealing a possible cause of fright from an animal, and intentionally deceiving that animal.]

If, indeed, the duty of truthfulness were only a social obligation, there might be a force in this reasoning that is lacking when we see that falsehood and deceit are against the very nature of God, and are a violation of man's primal nature. A lie is a sin, whenever and however and to whomsoever spoken or acted. It is a sin against God when uttered in his sight.

Man is given authority from God over all the lower animals;[1] and he is empowered to take their lives, if necessary for his protection or for his sustenance. In the exercise of this right, man is entitled to conceal from the animals he would kill or capture the means employed for the purpose; as he is entitled to conceal similarly from his fellow-man, when he is authorized to kill him as an enemy, in time of war waged for God. Thus it is quite proper for a man to conceal the hook or the net from the fish, or the trap or the pitfall from the beast; but it is not proper to deceive an animal by an imitation of the cry of the animal's offspring in order to lure that animal to its destruction; and the moral sense of the human race makes this distinction.

[Footnote 1: Gen. 1:28; 9:1-3.]

An illustration that has been put forward, as involving a nice question in the treatment of an animal, is that of going toward a loose horse with a proffered tuft of grass in one hand, and a halter for his capture concealed behind the back in the other

hand. It is right to conceal the halter, and to proffer the grass, provided they are used severally in their proper relations. If the grass be held forth as an assurance of the readiness of the man to provide for the needs of the horse, and it be given to him when he comes for it, there is no deception practiced so far; and if, when horse and man are thus on good terms, the man brings out the halter for its use in the relation of master and servitor between the two, that also is proper, and the horse would so understand it. But if the man were to refuse the grass to the horse, when the two had come together, and were to substitute for it the halter, the man would do wrong, and the horse would recognize the fact, and not be caught again in that way.

Even a writer like Professor Bowne, who is not quite sure as to the right in all phases of the lying question, sees this point in its psychological aspects to better advantage than those ethical writers who would look at the duty of truthfulness as mainly a social virtue: "Even in cases where we regard truth as in our own power," he says, "there are considerations of expediency which are by no means to be disregarded. There is first the psychological fact that inexactness of statement, exaggeration, unreality in speech, are sure to react upon the mental habit of the person himself, and upon the estimate in which his statements are held by others. In dealing with children, also, however convenient a romancing statement might momentarily be, it is unquestionable that exact truthfulness is the only way which does not lead to mischief. Even in dealing with animals, it pays in the long run to be truthful. The horse that is caught once by false pretenses will not be long in finding out the trick. The physician also who dissembles, quickly comes to lose the confidence of his patient, and has thereafter no way of getting himself believed."[1]

[Footnote 1: Bowne's _Principles of Ethics_, p. 224.]

The main question is not whether it is fair toward an animal for a man to lie to him, but whether it is fair toward a man's self, or toward God the maker of animals and of men, for a man to lie to an animal. A lie has no place, even theoretically, in the universe, unless it be in some sphere where God has no cognizance and man has no individuality.

* * * * *

It were useless to follow farther the ever-varying changes of the never-varying reasonings for the justification of the unjustifiable "lie of necessity" in the course of the passing centuries. It is evident that the specious arguments put forth by young Chrysostom, in defense of his inexcusable lie of love fifteen centuries ago, have neither been added to nor improved on by any subsequent apologist of lying and deception. The action of Chrysostom is declared by his biographers to be "utterly at variance with the principles of truth and honor," one which "every sound Christian conscience must condemn;" yet those modern ethical writers who find force and reasonableness in his now venerable though often-refuted fallacies, are sure that the moral sense of the race is with Chrysostom.

Every man who recognizes the binding force of intuitions of a primal law of truthfulness, and who gives weight to _à priori_ arguments for the unchanging opposition of truth and falsehood, either admits, in his discussion of this question,

that a lie is never justifiable, or he is obviously illogical and inconsistent in his processes of reasoning, and in his conclusions. Even those who deny any _à priori_ argument for the superiority of truthfulness over falsehood, and whose philosophy rests on the experimental evidence of the good or evil of a given course, are generally inclined to condemn any departure from strict truthfulness as in its tendencies detrimental to the interests of society, aside from any question of its sinfulness. The only men who are thoroughly consistent in their arguments in favor of occasional lying, are those who start with the false premise that there is no higher law of ethics than that of such a love for one's neighbor as will make one ready to do whatever seems likely to advantage him in the present life.

Centuries of discussion have only brought out with added clearness the essential fact that a lie is eternally opposed to the truth; and that he who would be a worthy child of the Father of truth must refuse to employ, under any circumstances, modes of speech and action which belong exclusively to the "father of lies."

VII.

THE GIST OF THE MATTER.

It would seem that the one all-dividing line in the universe, which never changes or varies, is the line between the true and the false, between the truth and a lie. All other lines of distinction, such even as those which separate good from evil, light from darkness, purity from impurity, love from hate, are in a sense relative and variable lines, taking their decisive measure from this one primal and eternal dividing line.

This is the one line which goes back of our very conception of a personal God, or which is inherent in that conception. We cannot conceive of God as God, unless we conceive of him as the true God, and the God of truth. If there be any falsity in him, he is not the true God. Truth is of God's very nature. To admit in our thought that a lie is of God, is to admit that falsity is in him, or, in other words, that he is a false god.

A lie is the opposite of truth, and a being who will lie stands opposed to God, who by his very nature cannot lie. Hence he who lies takes a stand, by that very act, in opposition to God. Therefore if it be necessary at any time to lie, it is necessary to desert God and be in hostility to him so long as the necessity for lying continues.

If there be such a thing as a sin _per se_, a lie is that thing; as a lie is, in its very nature, in hostility to the being of God. Whatever, therefore, be the temptation to lie, it is a temptation to sin by lying. Whatever be the seeming gain to result from a lie, it is the seeming gain from a sin. Whatever be the apparent cost or loss from refusing to lie, it is the apparent cost or loss from refusing to sin.

Man, formed in the moral image of God, is so far a representative of God. If a man lies, he misrepresents and dishonors God, and must incur God's disapproval because of his course. This fact is recognized in the universal habit of appealing to God in witness of the truthfulness of a statement, when there is room for doubt as to its correctness. The feeling is general that a man who believes in God will not lie unto

God under the solemnity of an oath. If, however, it were possible for God to approve a lie on the part of one of his children, then that child of God might confidently make solemn oath to the truth of his lie, appealing to God to bear witness to the lie--which in God's mind is, in this case, better than the truth. In God's sight an oath is no more sacred than a yea, yea; and every child of God speaks always as in the sight of God. Perjury is no more of an immorality than ordinary lying; nor is ordinary lying any less a sin than formal perjury.

The sin of lying consists primarily and chiefly in its inconsistency with the nature of God and with the nature of God's image in man. It is not mainly as a sin against one's neighbor, but it is as a sin against God and one's self, that a lie is ever and always a sin. If it were possible to lie without harming or offending one's neighbor, or even if it were possible to benefit one's fellow-man by a lie, no man could ever tell a lie, under any circumstances or for any purpose whatsoever, without doing harm to his own nature, and offending against God's very being. If a lie comes out of a man on any inducement or provocation, or for any purpose of good, that man is the worse for it. The lie is evil, and its coming out of the man is harmful to him. "The things which proceed out of the man are those that defile the man,"[1] said our Lord; and the experience of mankind bears witness to the correctness of this asseveration.

[Footnote 1: Mark 7:15.]

Yet, although the main sin and guilt and curse of a lie are ever on him who utters that lie, whatever be his motive in so doing, the evil consequences of lying are immeasurable in the community as a community; and whoever is guilty of a new lie adds to the burden of evil that weighs down society, and that tends to its disintegration and ruin. The bond of society is confidence. A lie is inconsistent with confidence; and the knowledge that a lie is, under certain circumstances, deemed proper by a man, throws doubt on all that that man says or does under any circumstances. No matter why or where the one opening for an allowable lie be made in the reservoir of public confidence, if it be made at all, the final emptying of that reservoir is merely a question of time.

To-day, as in all the days, the chief need of men, for themselves and for their fellows, is a likeness to God in the impossibility of lying; and the chief longing of the community is for such confidence of men in one another as will give them assurance that they will not lie one to another. There was never yet a lie uttered which did not bring more of harm than of good; nor will there ever be a harmless lie, while God is Truth, and Satan is the father of lies.

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